

NEW SERIES.]

[NO. 1.

THE JOURNAL
OF
PRISON DISCIPLINE
AND
PHILANTHROPY.

PUBLISHED ANNUALLY
UNDER THE DIRECTION OF "THE PHILADELPHIA SOCIETY FOR
ALLEVIATING THE MISERIES OF PUBLIC PRISONS,"
INSTITUTED 1787.

JANUARY, 1862.

PHILADELPHIA:
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TO THE READER.

This being the first number of the new series of "THE JOURNAL OF PRISON DISCIPLINE AND PHILANTHROPY," some reference to the action of the Society in relation to the change from a "Quarterly" to an "Annual" may be looked for here. We may, therefore, just say, that the ground upon which the change was proposed, and the manner in which it finally resulted, will be found to be fully set forth in the latter part of the "Report," which is the first and principal article in the present number. This Report occupies so much space, that the "Editorial Board" have not deemed it expedient to include in the present issue much additional matter.

REPORT.

THE Editorial Board, in the discharge of the duties assigned them, have prepared the following “Annual Report,” which they beg leave to present to the Society for its adoption:

Introduction.—This being the first time that an Annual Report has become a part of the regular proceedings of “The Philadelphia Society for Alleviating the Miseries of Public Prisons,” it seems a fitting occasion to take a wider range than is generally done in the preparation of such papers; and especially does it seem proper to bring into view the origin of the Society—the motives which prompted its organization, and some of the labors in which it has been engaged since its establishment, with the fruit of those labors. It will be seen that being but little known in the community, is not because it has been without vitality during its existence of nearly three-fourths of a century, but because it has steadily pursued its benevolent course, quietly and unostentatiously, not proclaiming its doings, or coming out before the public, excepting at such times as the accomplishment of some object of special importance required it.

Before proceeding in the narration, it is proper to mention, that the examination into the history of the Society during its earlier period, has been facilitated by referring to a pamphlet which it published about three years since, containing a sketch of its principal transactions from its origin to that time.

Origin and Organisation.—It appears that on the 2d day of February, 1776, a Society of a kindred character was organized in this city, under the name of “The Philadelphia Society for Assisting Distressed Prisoners,” which, though not identical with ours, was imbued with a good measure of the same spirit, and may be fairly viewed as a forerunner. It embraced among

its members some of the most prominent citizens of that day, and immediately commenced to carry out its benevolent purposes, and extended relief to many prisoners; but in September of the following year, the British army entered the city and took possession of the jail, which caused a dissolution of the Society, after an existence of nineteen months. The troubles resulting from the Revolutionary War, prevented any further organized action in the same direction for a number of years. But finally peace having been restored, and public attention having been again called to the condition of prisoners, and to the many abuses which existed, not only in the manner of administering the penal laws, but also from a want of proper statutory enactments—a number of benevolent citizens assembled on the 8th day of May, 1787, and agreed to form themselves into an Association to be called “The Philadelphia Society for Alleviating the Miseries of Public Prisons.” This meeting was attended by twenty-five persons, and was composed of men eminent in the community for their general position, and their enlarged Christian benevolence; and, with those who came into the arrangement immediately afterwards as original members, embraced several who, through a continued career of virtue and usefulness, attained to a good old age before they were gathered to their fathers, and were consequently personally known to, and their memory is pleasantly cherished by, many of those still active in the Society; and it may be said, as regards their example, that, “though dead, they yet speak.” A few of those who were longest spared to continue their useful services to their fellow men, were William White, (Bishop) Thomas Wistar, Zachariah Poulson, Dr. Benjamin Rush, Thomas Harrison, Dr. Samuel Powell Griffitts, Isaac Parrish, William Rogers, Jacob Shoemaker, Thomas Rogers, Tench Coxe, Charles Marshall, and Joseph James.

The reasons which prompted the organization, and the basis of the action contemplated, can hardly be better set forth than by here introducing the simple, but eloquent preamble to the Constitution:—“When we consider that the obligations of benevolence, which are founded on the example and precepts of the Author of Christianity, are not cancelled by the follies or crimes of our fellow creatures; and when we reflect upon the miseries which, penury, hunger, cold, unnecessary severity, unwholesome apartments, and guilt (the usual attendants of prisons) involve with them, it becomes us to extend our compassion to that part of mankind who are the

subjects of those miseries. By the aid of humanity, their undue and illegal sufferings may be prevented; the links which should bind the whole family of mankind together under all circumstances, be preserved unbroken; and such degrees and modes of punishment may be discovered and suggested, as may, instead of continuing habits of vice, become the means of restoring our fellow creatures to virtue and happiness.”

The principles thus enunciated at the outset, have controlled the plans and efforts of the Society from its origin to the present time, and their truth and value have been abundantly confirmed by large experience.

The late venerable William White (Protestant Episcopal Bishop of the Diocese) was elected the first President of the Society, and held the office until his death, on the 17th of July, 1836, a period of nearly fifty years. The general sentiment of the community with regard to this worthy man, was beautifully expressed in an editorial notice published in one of our daily newspapers, shortly after his decease, of which the following is an extract:—“If he went forth, age paid him the tribute of affectionate respect, and children rose up and called him blessed.”

Abuses in Prisons.—In the year 1773, John Howard, emphatically called “the Philanthropist,” entered on his course of self-sacrificing, and almost unprecedented devotion to the interests of humanity, particularly as connected with Prisons and Penal Institutions generally. In the course of his examination into the condition of these Institutions, which he did by personal visits to most of them, not only in England, Ireland and Scotland, but in nearly all the countries of Continental Europe—he discovered that some of the penal laws in force were so erroneous in principle, and so evil and oppressive in their practical operation, that he was convinced they ought to be either wholly repealed, or so amended as to rid them of their obnoxious features; and also that there was a great want of salutary legal enactments, regulating the manner of construction and arrangement of buildings for Prison purposes, and establishing rules for their management when occupied. And in the Prisons he saw such an amount of abuse in their administration, and of misery on the part of those in confinement in them, as often shocked and deeply grieved him. Many of the scenes which he witnessed, and facts he ascertained, were truly heart-sickening. A few of which may here be briefly noticed. Speaking of the dungeons in the

Conciergerie in Paris, he says, they “are totally dark, and beyond imagination horrid and dreadful. Poor creatures are confined in them for weeks—for months together.” In another of the Paris Prisons he states “that there are eight dungeons which open into dark passages. In four of these, 10 feet 8 inches by 6 feet 8 inches, I saw sixteen prisoners, two in irons, and all lying upon straw.” In the course of his account of the condition of things at Liege, in Belgium, he says: “The dungeons in the *new* Prison are abodes of misery still more shocking; and confinement in them so overpowers human nature, as sometimes irrecoverably to take away their senses. I heard the cries of the distracted as I went down to them. One woman, however, I saw, who (as I was told) had sustained this horrid confinement forty-seven years, without becoming distracted. The cries of the sufferers in the torture chamber may be heard by passengers without, and guards are placed to prevent them stopping and listening. A physician and surgeon always attend when the torture is applied; and on a signal given by a bell, the gaoler brings in wine, vinegar, and water, to prevent the sufferers from expiring. *‘The tender mercies of the wicked are cruel.’*”

Let us for a moment look at the then condition of a few of the prisons in England, where we might have hoped to find a better state of things. Of Cheshire County Gaol, at Chester, he says: “Under the pope’s kitchen is a dark passage, 24 feet by 9; the descent to it is by twenty-one steps from the court. No window; not a breath of fresh air; only two apertures (lately made), with grates in the ceiling, into the pope’s kitchen above. On one side of it are six cells (*stalls*), each about 7½ feet by three, with a barrack bedstead, and an aperture over the door, about 8 inches by 4. In each of these are locked up at night sometimes three or four felons.”

“In many gaols, and most bridewells, there is no allowance of bedding or straw for prisoners to sleep on, and if by any means they get a little, it is not changed for months together, so that it is offensive and almost worn to dust. Some lie upon rags, some upon the bare floor.”

In the County Gaol at Carlisle,—in one room, he states,—“I saw three men and four women lodged together.”

In the County Gaol at Gloucester, “there is no separation of the women.... The licentious intercourse of the sexes is shocking to decency and

humanity. Many children are born in this gaol." Many similar instances of a violation of the rules of virtue and decency are recorded by him.

Evil of Association.—Howard early became sensible of the great evil of associating together prisoners of all ages, and of all grades of criminality, and frequently deplored its corrupting influences upon the young and less hardened and practised in the ways of crime; and he remarked that even debtors, when associated with the felons (as they frequently were), soon became equally depraved with the worst of the criminals. Seeing this, he urged separation, at night, as *essential*, and at all times as *desirable*; but he does not seem to have matured any plan of thorough separation, by which alone these influences could be effectually guarded against.

Beside from the first, communicating freely the wrongs which he discovered, as they came to his knowledge, in the year 1777 he published, in a large volume, his "State of the Prisons." Thus the world was put in possession of facts, many of them of so horrible a character as to awaken an intense interest, and enlist the sympathies of the benevolent on behalf of the victims of such wrongs, many of whom were really not guilty of crimes to warrant their incarceration; and even when guilty, they were still human beings, objects of divine mercy, and though they had by their conduct forfeited their liberty, if the makers of the laws, and those appointed to administer them, did not feel the force of the Christian obligation, to endeavor to promote their reform and to care for their souls, it was but reasonable to suppose that the common impulses of humanity would have prompted to extend to them at least as much kindness and bodily comfort, as are admitted to be due to the "beasts that perish."

Prompt action for relief.—By the year 1787, therefore, society generally throughout the civilized world saw the necessity of a thorough reform, and legislators were prepared to listen to and favorably consider, propositions to enact laws, adapted to a wiser and more humane policy, and consequently our Society was organized at a time peculiarly favorable for the beneficent labors it contemplated; and as an evidence of the promptness with which these labors were commenced and practically carried out, for the relief of unjust suffering, it may be noted, that at the very first meeting, information being received through a member, that although an order had been issued three days before from the Supreme Executive Council, that a person who

had been sentenced to death, but had been pardoned, should be released from his irons, they still remained on him, the subject was referred to an appropriate committee, who took instant and successful measures to relieve the prisoner from his fetters, and effect his discharge from confinement.

Early contribution to the cause.—As a very gratifying practical endorsement and encouragement, received by the young Society, just one year after its establishment, it is proper to mention, that John Dickinson and wife, then of Wilmington, Delaware (but previously of Pennsylvania), by deed, dated in May, 1788, after reciting the formation of the Society, and expressing their desire to promote its benevolent designs, granted to the Institution some yearly ground rents, issuing out of premises in Philadelphia, amounting in the whole to fourteen pounds ten shillings (\$38 $\frac{2}{3}$) per annum, which sum (though not in its original form), still contributes that much towards meeting our annual expenditures. Several other benevolent individuals have, at different periods since, contributed liberally towards our funds, both by bequest and donation.

Considerations in relation to Penal System.—There is no reason to believe that the Society, when it first entered on its benevolent labors, contemplated directing its efforts towards the introduction of any new system, or effecting any general change in the then prevailing principles of prison discipline; but as their arrangements for securing efficient and comprehensive action within their own body embraced from the outset, a standing committee to visit the prisons and prisoners, they not only carefully examined and considered the provisions of the penal laws, but they had full opportunity of observing their practical operation upon the prisoners, and also of judging whether the gaols were so constructed and arranged as to adapt them to their proper purposes. On entering the prisons, the Committee saw in close association those of the various ages, from the comparatively far advanced in life, down to mere children; and from those long practised and utterly hardened in crime, down to such as had made their first serious misstep, which may have been more from want of thought than from actual depravity of heart, and they soon became convinced, that if the community desired the spread of vice and wickedness, they here had schools admirably adapted to their purpose. Exactly in accordance with their conviction of what must be the result of this state of things, crimes were found to increase in number and boldness, and this association of convicts was apparently the

only adequate cause which could be assigned for it. “This being the evil (to adopt the language of the ‘Sketch’ referred to), *separation* was the obvious remedy; and on this, therefore, as we shall soon see, they ultimately fixed, as the grand point to be aimed at. Thenceforth, *separation* and *employment* were felt to be the cardinal features of convict discipline; and even at that day it was maintained, that though the structures which this principle demanded, might be somewhat more expensive in the outset, they would, nevertheless, in the end, pay for themselves with large interest. In saving in police force; in the avoidance of conspiracies and insurrections; in the dispensing with violent and exciting modes of punishment; in the power to adapt the means of improvement and reformation to individual character and circumstances; in the exemption of the discharged prisoner from recognition by prison acquaintances; and in the moral and disciplinary virtue of seclusion in itself considered, were to be found a generous compensation for any extraordinary outlay.”

Former severity of the Penal Code.—According to the penal code existing in Pennsylvania at the commencement of the American Revolution, nearly a score of crimes were subject to capital punishment. In 1794, just eighteen years after the Declaration of Independence, it was ordained that murder in the first degree should be the only crime punishable with death, a transformation truly remarkable, as being accomplished in so short a time.

Many other features of the old code and its administration would, in these days, be considered in Pennsylvania to be highly barbarous; such as exposing the offender in the public streets, with the clogg and chain upon the neck or leg, and not unfrequently on both, or punishing by cropping or the branding iron, the pillory or the whipping-post, all of which were at one time conspicuous features of the code and its administration in our city; and thus the victim was exposed to the gaze and taunts of the rabble, and almost necessarily hardened by the cruel system, instead of being reformed. Ten years proved sufficient to change all this, and instead of these relics of barbarity, to introduce a more rational, humane, and Christian system, by which restraints and “punishments were adopted, better fitted to reclaim the transgressor, and not less effective in penal suffering.”

Reforms Applied for.—On account of this odious state of things, so abhorrent to the better feelings of humanity, the Society, as early as August,

1787, appointed a committee to inquire into the effects produced upon convicts, then at work in the streets, and also its influence on society, and to collect such observations as might assist in correcting any abuses suffered therein. As a result of their inquiries, the Society adopted a memorial to the Legislature, asking that private, and even secluded labor should be substituted for that which had been public and disgraceful in the manner of its imposition. They also suggested that the mingling of the sexes, and the use of intoxicating drink in the prisons, were evils requiring legislative remedy.

Abuses Indicated.—In the autumn of 1788 the Society indicated the following defects and abuses in the treatment of prisoners.

1. Insufficiency of clothing for the untried, and that clothes which the Society had supplied to poor prisoners had been exchanged for rum.
2. The daily allowance to persons committed for trial was only a half of a four-penny loaf, while those detained as witnesses had no allowance at all.

A stranger accidentally present at the commission of a crime, without friends to enter security for his appearance, was committed to jail for the benefit of the community, and suffered more than the actual criminal; and what added greatly to this grievance, he was afterwards detained until he paid the jail fees! The Society earnestly protested against this practice, and against detaining any prisoners for any such cause after acquittal. This was one of the abuses which Howard ranked amongst “enormities.”

3. No provision was made for decent lodging; the inmates of the jail lying indiscriminately upon the floor, unless supplied with something better by their friends. It will scarcely be believed that, in the memory of persons now living, the male and female prisoners in the jails of this city, were allowed a promiscuous association, and were even locked up together in the rooms at night. The new Society remonstrated loudly, and the men and women were soon after confined in separate apartments. Almost equally incredible is the fact, that prisoners complained that they were not allowed to purchase intoxicating drinks where they could get them cheapest, but were compelled to buy them in the jail at a considerable advance. To obtain them, they not only stripped themselves, but when new prisoners were

brought in they took their clothing from them by force, and exchanged it for rum.

4. The indiscriminate intermingling of criminals, untried prisoners, and debtors, was another monstrous abuse, and led, in many instances, to the conversion of debtors and innocent parties into criminals.

5. Parents were allowed to have their children with them in jail, and young offenders were exposed to all the corrupting influences of association with confirmed and reckless villains.

6. It was presented as a radical evil that a large proportion of the prisoners were unemployed; and farther, it was maintained that labor, even in the public streets, was preferable to sheer idleness within the walls.

In view of these several considerations, and as the result of careful observation, the Society resolved that “labor in seclusion, and the interdiction of all intoxicating drinks, were the two principal elements of the desired reform.”

Publications; and Reform of Penal Code.—From an early period, the Society had issued through the press, memorials and addresses in behalf of its objects, and in 1790 a pamphlet was published, entitled, “Extracts and Remarks on the Subject of Punishment and the Reformation of Criminals,” 500 copies of which were distributed among the members of the Legislature, and other persons prominently connected with the government, with a view to preparing them to support such reforms as the observations of the Society had suggested to be necessary. As a result mainly due to the efforts of the Society, an Act was passed in April, 1790, to reform the penal code of the State, by which the principle of individual separation was recognized, though applied strictly only to “more hardened and atrocious offenders, who are sentenced for a term of years,” while the introduction of intoxicating drinks was prohibited under severe penalties.

Early Advantages of Separation.—Even this very partial separation resulted so satisfactorily, that one of its early fruits was the Act of 1794, by which it was intended that not only “the more hardened and atrocious offenders,” but *all* convicts should be subjected to seclusion. But as the number of the cells was not equal to one-third the average number of the convicts (say thirty of

the former to one hundred of the latter) the Inspectors were obliged to exercise their discretion. Some of the prisoners, immediately on their admission, were conducted to their separate cells, and remained in them until their discharge; and the remarkable and most gratifying fact is on record, (see Roberts Vaux's Letter of Sept. 21st, 1827, to William Roscoe, of Liverpool,) that *the cases thus treated were the only instances of reformation which continued throughout the lives of the individuals*, so far as they could be traced, or their condition ascertained by diligent inquiry.

Jailor's Fees.—In the year 1796, the sore evil and reproachful practice which existed, of the jailors exacting fees, as a condition of liberation from imprisonment, was taken in hand, and an adequate salary to the keeper was suggested as the best remedy, so that he might have no personal interest in any question affecting the liberty of the prisoner. This wholesome suggestion was not, however, at that time, as fully accepted and acted upon as its importance demanded.

Imprisonment of Debtors.—The broad and interesting question of imprisonment for debt, in its various aspects, came up for investigation and consideration by the Society in 1798, and resulted in an Act of the Legislature in the same year, removing some of the most objectionable features of the existing laws on that subject.

Instruction of Prisoners.—In the same year, the duty of *instructing ignorant prisoners in useful knowledge*, which previously to that time had been almost wholly neglected, both in Europe and this country, took such hold of our Society that it not only drew forth warm expressions of sympathy in such efforts, but resulted in an agreement to allow compensation for services rendered in that behalf.

Vagrants.—In 1800, the *employment of Vagrants and Convicts*, and the expense of their support, were made a subject of inquiry, and resulted in some interesting statistical and other facts being brought into view.

Pardons.—The subject of Pardons, also, at this early stage of reformatory movements, was discussed by the Society with much interest, and it was its settled judgment that the exercise of the prerogative at all, excepting in some rare and peculiar cases, was of very doubtful expediency; and that in the manner in which, in point of fact, it was generally exercised, it was a

positive evil, both as regards the prisoner and the community. Pardons, it is believed, are nearly, if not quite, as frequently extended to undeserving, as to deserving cases; and beside this objection, the mere impression on the mind of the prisoner that, by effort and importunity, and the aid of the requisite agencies, he may succeed in obtaining a discharge before the expiration of his sentence, keeps him in a state of unsettlement, which entirely unfits him for the wholesome influence which the prison discipline is intended to exert.

Prison Library.—One of the next prominent measures was the establishment of a *prison library*. The Inspectors agreed to pay the cost of a book-case, and a Committee of the Society was appointed to purchase proper books and frame rules for their circulation. In referring to the list reported, we find a large proportion of the selection was from the higher and more refined department of didactic literature, which, though intrinsically of undoubted value, we apprehend that many of the volumes were not adapted to the greater part of the class of persons for whose use they were intended. Even down to the present time, although the press is so prolific in its issues, and great judgment has been displayed in preparing books adapted to the various grades of mind, the task of making a selection is found to be very difficult. A large proportion of the prisoners, on entering, prove to be very nearly, if not quite, without literary culture; and their previous associations have been such, that the feelings and modes of expression which pervade refined society, are to them totally incomprehensible. As regards many of these, although they have in years fully attained to manhood, they are still merely children in mental capacity and training, and consequently books of the most simple and elementary character are alone suited to their condition.

Bibles for the Prisoners.—In addition to establishing the Library, it was at the same time agreed that the convicts and other prisoners should be supplied with Bibles and Testaments, and a Committee was appointed to report on their distribution and its results.

Digest of Penal Laws.—In 1810, the subject of a general improvement of prison discipline throughout the State was taken up, and a Committee was appointed to prepare a suitable memorial; but soon after, Jared Ingersoll,

then Attorney General of the State, was commissioned to prepare a digest of its penal laws, and the suggestions of the Society were made to him.

Sundry Abuses Revealed.—"In January, 1814, the Grand Jury of Bucks County presented the scanty allowance to poor debtors, as a subject deserving the attention of the public authorities. Fourteen cents a day only were allowed for provision, clothing, bedding and fuel, and even this niggardly allowance was withheld from the debtor until the creditor received notice of his commitment. For some days, therefore, they might be exposed to extreme suffering, unless the jailor or some kind friend afforded them relief. The rations of convicts were one pound of bread a day, and six cents' worth of fuel, and one extra blanket in extreme weather. The subjection of persons committed for trial to the same fare as convicts, was also presented as a reproach to the community. It was, moreover, urged, that the manner and amount of the jailor's compensation should be such as to remove from him all temptation to benefit himself at the expense of his prisoner. This position, which the Society assumed many years before, is one which the most obvious principles of justice warrant. It extends to magistrates and arresting officers, as well as jailors. To none of them should there be offered the slightest temptation to distress or annoy those in custody, for the sake of profit to themselves."

Measures to Obviate Them.—Resulting from the facts and suggestions thus developed, measures were soon adopted by the Society for ascertaining the condition of penal institutions in other States, and steps were taken towards memorializing our own Legislature in behalf of desired improvements; but definite action on the subject was prevented, by various circumstances, until January, 1818, at which time a memorial was adopted, setting forth "the crowded state of the Philadelphia Prison, and the impracticability of reaching the true end of all penal discipline therein, and urging the erection of penitentiaries in suitable parts of the Commonwealth, for the more effectual *separation and employment* of prisoners, and so proving the superiority of that system."

Western Penitentiary.—From the time that the principle of individual separation of convicts was recognized by the Legislature, in 1790, the legal provisions and the arrangements of the prison had been so defective, that a full and fair trial of the system could not be made; yet notwithstanding the

impediments it encountered, its good results were so evident, that the Society deemed it proper to call public attention to the importance of extending it throughout the State. This being done, in the same year (1818) the Act was passed, authorizing the erection, at Pittsburg, of the Western State Penitentiary, “on the principle of the solitary confinement of the convicts, as the same is, or hereafter may be, established by law.” In the passage of this Act, it is rather to be regretted that the term “separate” had not been used, instead of “solitary,” as it would have more accurately described what is now emphatically called “the Pennsylvania System,” and would not have been so likely to aid in the prejudice towards it, which is entertained by persons in other States and countries.

Inquiries from London.—About the same time Dr. Lushington, on behalf of the London Society for improving the condition of Prisons, then recently established, requested of our Society information as to the results of the melioration of our Criminal Code. The reply expressed strong confidence in the full success of the system, when the difficulties were overcome which resulted from the construction of the Philadelphia gaol, not allowing the fundamental principle of separation to be observed except to a very limited extent, and when the new Penitentiary, then in progress at Pittsburg, was completed, the plan of construction of which being intended to especially adapt it to entire separation of the prisoners from each other.

Inquiries from New York.—About the same time, a series of inquiries, tending to the same point, were addressed to us, by a Committee of citizens of New York. The reply most fully sustained the efficacy of our more lenient system, so far as facilities existed to properly carry it out. “Were a Penitentiary established,” they say, “sufficiently large, and so constructed as to keep the prisoners separated from each other during work, meals, and sleep (in other words, perpetual separation), and if no pardons were granted except in extraordinary cases, its efficacy would soon be self-evident.”

They also referred to the difficulty of procuring suitable employment, the frequency of pardons, and the deplorable condition of discharged prisoners, as being very serious, but not really necessary evils. They regarded the suggestion to extend capital punishment beyond its then narrow limits, or to resort to transportation, as being evidently inexpedient.

“The chain was also repudiated, and a fair trial of labor in seclusion from other convicts, with moderate diet, under suitable agents, was urged as the wisest, safest, most humane, most efficient, and in the end most economical mode of dealing with criminals.”

Memorial to the Legislature to establish an Eastern Penitentiary.—The investigations of the Society, and their observations of the practical effect of the reformatory suggestions which they had made from time to time, so far as they had been carried out, so thoroughly convinced them of the correctness of these views, that they addressed a memorial to the Legislature of the State, in January, 1821, setting forth the tendency of the degrading and sanguinary punishments formerly inflicted to excite the malignant passions of offenders, instead of bringing them to a better mind, and thus frustrating the great ends of law; and then the various modifications of the system, designed to obviate existing evils.

These modifications, they alleged, had proved quite as valuable as was anticipated, and clearly demonstrated the superiority of the new system, if it were fairly tried. They, therefore, urged “the erection of a new Penitentiary for the Eastern District of the State, so constructed as to admit of the constant separation and healthful labor of the convicts.” This was promptly responded to, and in the following May the law was passed for building the Eastern Penitentiary at Philadelphia, which is now the model prison on the “Pennsylvania” or “separate system,” and as such, at this day maintains a prominent position among the penal institutions of the world, and stands as a noble monument of the liberality, humanity, and wise economy of its founders.

Abuses by Committing Magistrates.—In 1820, and also in 1822, the illegal and corrupt exercise of power by the Magistrates, which was most oppressive on the poor and helpless, became again a subject of inquiry, and a committee was appointed to confer with the Governor of the State on the subject, and a memorial was soon afterwards presented to the Legislature soliciting its interference to remedy the evil.

Discharged Prisoners.—In November of the same year a committee was raised to consider of and report on the project of establishing an asylum for such discharged convicts as might be unable to obtain employment, but it

appearing that there were serious difficulties in the way of carrying it out at that time, it was abandoned.

Juvenile Offenders and "House of Refuge."—At a meeting of the Society, held January 28, 1823, a committee was instructed to "inquire into the condition of juvenile offenders, and what relief is needed in their case." This being a matter of deep interest, and requiring much consideration, from its inherent difficulties, the inquiries which were prosecuted from time to time, as opportunities presented, did not reach any definite result till January 21st, 1826.

At this time the committee reported warmly in favor of an institution for their reception, but expressed doubts whether the Society had the needful means to establish it, or the legal powers that would be required for its management. It was resolved to call a meeting of citizens on the first day of February ensuing, before which the subject should be fully opened. An address was agreed upon to be submitted to the meeting, in which a brief history was given of the melioration of the penal laws and institutions of the State, and of the encouraging result, and a confidence was expressed in a still further improvement on the completion of the two Penitentiaries—the eastern and western. "But," it was added, "as our true policy, as well as our manifest duty, consists not less in preventing crime, and checking the tendency to it, than in punishing and reclaiming the overt offender, the restraint and reformation of children and youth exposed to criminal habits, becomes an imperative obligation." They, therefore, earnestly commended the new project to the meeting of citizens to be assembled under their call. These views were cordially responded to by the meeting, and action being promptly taken, resulted in the erection of a "House of Refuge for juvenile delinquents," which was opened for inmates on the 1st of December, 1828, and the benefit the Institution has conferred on the community, and on the class for whose reception it was intended, are generally felt and acknowledged. And it is believed that many individuals, who are now reputable members of the community, would have been at this time deeply steeped in criminality, and degraded outcasts of society, if it had not been for the protecting care and moral training of such an institution, extended to them in their youthful days, when first tempted to turn aside from the paths of virtue and rectitude.

Proposed Improvements.—In July, 1827, in anticipation of the approaching completion of the Eastern Penitentiary, the Society appointed a committee to prepare a memorial to the Legislature, setting forth the importance of carrying into full effect the *principle of separation, &c.* And in July, 1829, another memorial was forwarded, embracing the two following suggestions:

1. That criminal courts be so organized, as that the prisons may be speedily delivered of all persons held to answer for offences, *&c.*
2. That provision be made for the complete separation of all persons committed for trial, or as vagrants, as well as those under sentence.

Publications Respecting the Separate System.—About this time much interest was manifested in relation to the character of the discipline to be established in the new Penitentiary, and it was found that conflicting views were entertained by persons prominent for their philanthropy, and their promotion of the valuable reforms of the day. Several of these advocated separation *without labor* as being most prompt and effectual in promoting the reformation of the criminal, and as admitting of a shorter term of sentence. It may be mentioned, however, as an interesting and important fact, that our Society never sanctioned these views. Its whole history, almost from its origin, contains abundant evidence that a union of *separation with labor*, if not held to be a *sine qua non*, was at least deemed to be of the highest importance. With a view to preventing this division of sentiment on a collateral point, from in any way prejudicing the main principle of the entire separation of the prisoners, which was contemplated in the erection of the Penitentiary, a large edition of a pamphlet, (by our fellow member, George Washington Smith,) clearly vindicating what was known as the “Pennsylvania System,” showing its humane and reformatory tendencies, was published and circulated.

Opening of the Eastern Penitentiary.—At length the time had arrived, by the opening of the Philadelphia Penitentiary, for the reception of convicts, on the 25th of October, 1829, when the principles of discipline steadily advocated by the Society for the preceding forty years, were to be practically tested under their immediate notice. Heretofore, the only instance of these principles being approximately carried out in a building

planned and erected for the purpose, was at Pittsburg, a very inconvenient distance for observation, and beside that, the attempt was there made to introduce the system of separation *without labor*, which, as might have been anticipated, did not result satisfactorily, and had been the occasion of exciting considerable prejudice against the separate system both at home and abroad.

Subsequently to the opening of the Penitentiary, some small defects in the structure and mode of discipline were revealed by experience, and promptly remedied as far as practicable. That some further improvements may yet be called for, not involving the fundamental principle of absolute separation, is not improbable, as we have never claimed that our work was perfect. The Annual Reports of the Inspectors placed in charge of the Institution, issued since its opening, afford most satisfactory evidence of the soundness of the principles recognized in its discipline, and our Prison Society, who have with deep interest watched its workings for more than thirty-two years, not only have never had misgivings in relation to it, but have constantly to the present time, been strengthened in the conviction of its being the true system. We are so well convinced of this, that it is deemed worth while, at this point, to introduce a short notice of the system itself; especially as we are aware that many persons both in this country and in Europe, are opposed to its introduction, mainly, as we believe, from a misapprehension of what the system and its results really are. We are the more prompted to this, from a belief that the cause of humanity and of Christian philanthropy, the good of the prisoner and of the community alike unite in calling for its general introduction. This notice, which from the character of the occasion, must necessarily be very brief, may partly assume the form of contrasting it with what is known as the “Auburn,” or “*Congregate, silent system*,” which is generally believed to approximate most nearly to it.

What the Pennsylvania System is.—The basis of our system is, AN INDIVIDUAL CELL FOR EVERY PRISONER, AND THAT EACH PRISONER SHALL BE KEPT WHOLLY SEPARATE FROM EVERY OTHER PRISONER, DAY AND NIGHT, DURING THE ENTIRE TERM OF CONFINEMENT. The thorough separation here spoken of, must not be misunderstood, however, to mean, or to be, as has been charged, “perpetual solitude,” or “total isolation from the whole world.” The law never designed that it should be so, and its actual character in its practical working is very different from this. It is not society in itself, or intercourse with his fellow-men (excepting, so far as its

privation might be salutary as a punishment,) that is denounced by the system, but it is association and companionship with criminals, with the depraved and wicked, which it is believed, the good, both of the criminal and of the community into which he is to return upon the termination of his sentence, requires, should be utterly prohibited. The social intercourse under this system, is, in point of fact, abundantly sufficient for the health, both of body and mind. Beside that which takes place between the prisoners and the resident Officers and the Inspectors of the prison, by which means each convict receives several visits every day. The following are named by law as “official visitors,” who have a full legal right to visit the penitentiary and enter the cells of the prisoners whenever they shall think proper, to wit: “the Governor, Speaker and members of the Senate, the Speaker and members of the House of Representatives, the Secretary of the Commonwealth, the Judges of the Supreme Court, the Attorney General and his deputies, the President and Associate Judges of all the Courts of the State, the Mayor and Recorder of the cities of Philadelphia, Lancaster and Pittsburg, Commissioners and Sheriffs of the several counties, and the Acting committee of the Philadelphia Society for Alleviating the Miseries of Public Prisons.” The last of these, as we shall see in the progress of this report, availing themselves of this authority, are untiring in their efforts to promote the social, moral and religious welfare of those confined in our penitentiaries and jails. Thus, by our system, instead of the society of the ignorant, the degraded and the criminal, whose efforts would be directed to dragging them down to still lower depths of vice and infamy, than they might yet have reached; we give them that of the virtuous, the intelligent and the good, who not only make it their business to see that they have the bodily comforts to which they are entitled; but who are desirous of promoting their reformation with a view to their own real good through the remaining term of their lives, and to securing society against renewed depredations from them after their discharge; and above all, that they may be instrumental, under the divine blessing, in bringing these poor wanderers and outcasts, into a true sense of their past sinfulness, that they may in condescending mercy, be yet brought, by repentance and amendment of life, to work out their soul’s salvation.

There is a keeper to every division of about thirty prisoners, and these keepers are selected with special reference to their fitness, on the score of

morals, temper and intelligence. None of the keepers, or other officers in the penitentiary, go armed in any way, there being no occasion for it, as it is morally certain that no revolt, or insubordination, threatening violence, can ever take place. Each prisoner is fully sensible that an effort to escape, must necessarily be unsuccessful, and therefore, he never broods over its possibility, nor devises plans to subdue his keeper, or even murder him, if need be, to effect it. On the contrary, the whole system is one of kindness, it might almost be said, between the prisoners, the keepers and the visitors. The prisoner, knowing he is powerless, becomes passive, and there being nothing to rouse his vindictive or other evil passions, he is soon brought, in his quiet retirement, to view his past life in a very different light from what he ever did before. And also, as the society of the bad, which he formerly coveted and enjoyed, is shut out from him, his craving for companionship, soon brings him to enjoy the company of the virtuous and good, which he formerly despised; and consequently, the instruction and counsel which is extended to him by his visitor, will meet with a reception and make an impression, which under other circumstances, we might look for in vain. And in the moment of contrition, when the poor outcast is brought to abhor himself, and would fain pour out his soul before God, it may be in the presence of his visitor and religious instructor, there is no hardened and depraved associate with him, to sneer at his supposed weakness and prompt him to reject the proffered mercy.

Here, also, the rudiments of education can well be imparted, and as there is nothing to distract the attention, the lessons make an impression such as is never witnessed in the community at large, much less in the congregate system of imprisonment. Our visitors to the Penitentiary frequently witness examples of this, which are truly remarkable. Many who had grown up without any literary culture, not being able to write or even to read the simplest matter on entering the Prison, in the course of even a few months have become capable of writing quite a good hand, and of reading with facility. Some of them, who in their previous lives had felt the process of education to be altogether a repulsive task, and therefore had failed to make any advance, and had even been brought to believe that the ability to read and to write was a mystery, which was, and always must remain to be, beyond their power to fathom—here find themselves to be capable of comprehending the lessons presented to them; and as the curtain begins to

rise before this supposed mystery, they see, as it were, a new world open before them—what was formerly a dreaded and repulsive task, becomes a pleasant privilege, and they pursue with avidity the path to knowledge which is thus opened to them. This change in their condition improves their whole moral character. Also, as time would hang heavily on the prisoners if without employment, they freely perform the work allotted them, accepting it rather as a *privilege and a blessing*, than as a *penalty*, as is the case under the congregate system, whether *silent* or otherwise. And, as it is with regard to what may be called common school learning, so it is in respect to acquiring a knowledge of the mechanic arts there introduced, being necessarily a few only—such as shoemaking, cane-seating of chairs, cabinet making and weaving. They soon become masters of these, and the task allotted them being moderate—after the accomplishment of which they are credited with “overwork”—some individual prisoners, on their discharge, have been paid upwards of 250 dollars, which stood to their credit on the books. In a recent instance, a prisoner, on his discharge after a three years’ sentence, was so paid 213 dollars.

There is another point on which, we are aware, that many benevolent minds, who have merely viewed the “Pennsylvania System” theoretically, have felt much apprehension—which often amounts to a *conviction*—which is, that the mental condition of the prisoners, under its discipline, is liable to serious injury. This, we feel authorized to say, is a *fatal* mistake. We use the term *fatal*, because the adoption of this view tends to prevent the general introduction of the system, which we think is greatly to be regretted. A practical acquaintance with its working, proves this apprehension to be wholly unfounded. Close observation, specially directed to this point, with carefully prepared tabular statements of the mental condition of each prisoner on entering and on leaving the Eastern Penitentiary, (as also at intermediate periods) kept for a series of years, have fully established the fact, that the prisoners, instead of being injured, have been decidedly improved in this respect.

Its Result.—From the foregoing positions the result may thus be summed up: That many of those who entered the Penitentiary without any proper sense of their responsibility to their Creator, or their duty to their fellow creatures, have, as we trust, through the Divine blessing accompanying the instrumentalities surrounding them, attained to clear views and

conscientious convictions on these points, and have gone forth into the world with firm resolves that—their Maker strengthening them—they would thenceforth do nothing which would grieve His Holy Spirit or wrong their fellow men. And that most of those who entered nearly destitute of learning, even in its simplest form, and without a knowledge of any trade by the pursuit of which they might be able to secure an honest maintenance, have emerged greatly improved in both these respects, and better fitted for the duties and responsibilities of life.

The “Auburn” or Congregate Silent System.—The principle of “separation,” in the abstract, seems to be very extensively, if not generally conceded, both in this country and in Europe; but, on various pleas, it is but partially adopted in practice in the United States beyond the limits of Pennsylvania, and therefore, as we contend, fails in effecting the desired results. This partial adoption under the “Auburn” system consists of confinement in separate cells at night, but congregation in the workshops, or elsewhere, during the day—under the positive injunction, however, that when together, the prisoners shall have no communication with each other by word or sign of any kind, and this injunction is enforced by the presence of armed guards, and any breach of it is visited by heavy penalties. This system is adopted on the strange plea that man is a social being, and he is therefore entitled to society as a natural right, not seeming to be aware that, by the restraints imposed, they entirely rob him of his social character. It reminds one of the Fable of Tantalus, the “Lydian King, who was condemned to be plunged in water, with choice fruits hanging over him, without the power of reaching them to satisfy his hunger or his thirst.” Notwithstanding, however, the strictness of the watch maintained, the severity of the threatened penalty, and the example of the actual punishment administered upon those who have in any way violated this rule of silence, and non-recognition of each other when together—from the almost irresistible craving for the enjoyment of some of the rights of social intercourse, which is stimulated by being brought into the presence of each other—considerable intercommunication, by various methods ingeniously devised by them, it is admitted, does, in fact, take place between the prisoners. To enable the officers in charge effectually to prevent this, and to maintain the general discipline of the Prison, corporal punishment, it is believed, is deemed to be an essential part of the system, and this is

consequently frequently administered with great severity. At the meeting of the American Prison Association, held in the city of New York in the Autumn of 1860, (at which some of our members were present as delegates) a New York gentleman, prominent as a philanthropist, familiar with the character of their Prisons, and who had been one of the regular visitors at Sing Sing, declared that their Prisons were like menageries, in which the prisoners were kept and treated as so many wild beasts, and that, a few years back, the severity of the punishments at Sing Sing was such, that the stone at the foot of the whipping-post was always wet with the blood of the victims of the lash. We trust, however, the discipline is now maintained there by means less severe. The regulations connected with our system, on the contrary, entirely exclude the lash, and, excepting in solitary and very extreme cases, admit of no more severe punishment than imprisonment in a dark cell, with reduction of food; and we are assured that a very few days only, of such discipline, are sufficient to curb and subdue the most refractory—and even this mild punishment has to be applied very rarely.

Influences of the Systems Compared.—There is nothing, as we believe, in the working of our system, which can make the prisoners *worse* than when they enter; but on the contrary there is much, the direct tendency of which is to make them better. We are well aware that *all* are not reformed by it, though we thankfully trust that such is the result with regard to many. Under the discipline of the “Auburn System,” we can hardly see how reform amongst the prisoners can be promoted. And we are convinced that there is a mistake in the confident claim set up, that, as conversation between the prisoners is almost wholly suppressed, they cannot corrupt each other, and consequently, if not made better, they at least cannot be made worse. The very fact that the prisoner, in daily, though silently, meeting in the workshop a large mass of fellow-convicts, is sensible that he is surrounded by, and on the same level with, the off-scouring of the community, degrades him in his own estimation, and silently, perhaps slowly, but almost inevitably, sooner or later, drags him down, till he becomes sorrowfully demoralized. In confirmation of this, it may be mentioned that one of our own members, in the course of a visit a few months since, at the State Prison at Auburn, was informed by the officer in attendance, that amongst their convicts there were ministers, doctors, and lawyers. Upon this, our member inquired if they there maintained a

deportment consistent with their previous position in society. The reply was: "For a short time they do; but they soon sink to the level of the most degraded."

Another point of much consequence, in comparing the "Congregate" and "Separate" systems, is, that by the former, each of the prisoners becomes familiarly acquainted with the countenances of the others, and consequently, on meeting after leaving the prison, an immediate recognition takes place between them, and on the principle that "Birds of a feather flock together," they are united by a kind of sympathy, which is anything but salutary; while by the latter, never having seen each other during their incarceration, there is no danger of their being drawn into evil association after their discharge.

Reference to Publications.—Our time and space forbid our extending this branch of our subject. Before leaving it, however, we think proper to refer to two or three, amongst the many publications in which interesting and valuable views may be met with on the subject of prisons, particularly such as relate to what we have been endeavoring to set forth as the "Pennsylvania *Separate* System" of prison discipline, and its practical working.

First. Those eminent men and close observers, De Beaumont and De Tocqueville, who visited this country from France, a few years after the opening of our Eastern Penitentiary, for the purpose of examining into the character of our institutions generally, in their work, entitled "*Du Système Pénitentiaire Aux Etats-Unis*" (the Penitentiary System in the United States), give some very satisfactory views with regard to the working of our Penitentiary, where they spent considerable time, visiting all the prisoners by permission of the authorities, and remaining in their cells in private sufficiently long to obtain from the inmates a knowledge of the practical working of the system upon them. This work, in the original French, and also an English translation of it, by Professor Francis Lieber, himself eminent as a close observer, and deep thinker on the subject of penal laws and penal institutions, and their systems of discipline, are to be found in the Society's Library. The translation is accompanied by some very valuable Notes by the translator, and in an Appendix to it there is an Essay, by the same, treating specially on the "Pennsylvania System," republished

from the Encyclopædia Americana. A small volume, entitled, "Prisons and Prisoners," by Joseph Kingsmill, chaplain of the "Pentonville Prison," near London, conducted very much upon our system, is well worth reading. We would also refer to an elaborate "Essay on Cellular Separation," written by our fellow-member, William Parker Foulke, under appointment by "the American Association for the improvement of Penal and Reformatory Institutions," and read before that Association at the Annual Meeting, held in New York, in the autumn of 1860, as being an able exposition of our system. This Essay was published by our Society soon after its preparation.

Misstatements corrected.—In this connection, it is due to the cause of truth to say that Charles Dickens, the novelist, in his report of his visit to the Eastern Penitentiary, contained in his "American Notes," makes representations so palpably erroneous, as to appear to those familiar with that institution and its government to be absolutely absurd. But as he uses the form of a direct reference to particular cases, strangers will more readily than they otherwise would adopt his statements as setting forth the truth. It should be remembered, however, that the celebrity to which this author has attained, is as a writer of "fiction," not of truthful narrative or history. In this instance, (possibly without being aware of it), he has maintained the consistency of his literary character. The late William Peter, the worthy consul of Great Britain, residing in this city, soon after the book of Dickens was published, made a personal examination into each of the cases referred to, and in a letter to the late Job R. Tyson, thoroughly refuted the misrepresentations.

Application for County Prison granted.—In 1831, the Legislature provided for the sale of the Walnut Street Prison, and for the erection of a largely increased number of cells in the Eastern Penitentiary, so as to be prepared for the reception of the inmates of the former. The Society being apprehensive that the principle of separation might be interfered with by the sudden introduction of so large a number of prisoners, memorialized the Legislature to have another prison erected on the same principle, for the use of the county. A law was soon after passed, providing for the erection of one for the use of the city and county of Philadelphia, capable of holding at least three hundred prisoners, on the principle of separate confinement.

Bad condition of County Prisons.—The receptions into the Eastern Penitentiary from other parts of the State, afforded constant evidence of the miserable condition of the County Prisons. The prisoners received from them were so injured by the abuses and bad management and arrangements prevailing there, that it was very difficult to maintain the consistency of the Penitentiary discipline, or to secure its legitimate results in such cases, and it was, therefore, deemed essential that the system of separation for all classes of commitments should be introduced into all the County Prisons, and in 1832 a Committee of the Society was appointed to investigate the condition of these prisons throughout the State.

Matrons.—In 1833, the Society represented to the Prison Inspectors, the propriety of appointing matrons to have charge of the female prisoners.

Public Executions.—In 1834, the views of the Society were met, by the passage of an act requiring all sentences of death to be executed within the walls, or yard of the jail, limiting the number and character of the witnesses allowed to be present, and forbidding the attendance of any person under age.

Care in relation to the New County Prison.—Early in the year 1835, the new County Prison being nearly ready to be occupied, the Society became much interested in the system of discipline to be there adopted; for though the Act itself provided for individual separation, it was feared that the character of the prisoners to be received might lead to a relaxation of this essential principle. They, therefore, appointed a committee to take the matter in charge.

Plans for County Prisons.—Instructions were given to the Acting Committee in 1836, to have plans prepared for the County Jails, on the separate system. And upon their report in 1838, the legislature was memorialized by the Society, to appoint commissioners to investigate the condition of these jails.

Annual County returns of Crime, &c.—In 1839 and 1840, the Acting Committee of the Society was engaged by calling the attention of the Executive to the subject, and otherwise, in endeavours, by legal enactment, to secure an annual return being made to the Secretary of the commonwealth, with regard to the condition of all the county jails, and the

proceedings in the criminal courts; giving full statistics on all points of especial interest, with a view to aiding in adapting legislation to the existing state of things in the prisons, and improving the criminal code, where necessary. Although a law was subsequently enacted, to effect this very desirable object, it has been almost wholly without operation.

Moral and Religious Instruction.—From its first introduction, moral and religious influences, and instruction were considered to be necessary adjuncts to the separate mode of discipline. This subject was consequently referred to a committee of the Society in 1841, and in 1843, the appointment of a special officer as a moral instructor for the Philadelphia County Prison, was reported, his salary being paid by private subscription. Such an officer had been appointed in the Eastern Penitentiary in 1838.

Quarterly Journal.—The Society had, at different times from its rise, expended considerable sums of money in publishing pamphlets, &c., with a view to enlightening the public mind, and thus furthering the benevolent objects for which they had associated, and for the promotion of which they were so constantly and zealously laboring; and, finally in the autumn of 1844, it was deemed expedient to commence the publication of a quarterly journal, as furnishing a means by which they could embody in a more permanent form, the results of their observation, inquiry and experience, and might also embrace other kindred subjects. In pursuance of this conclusion, at the beginning of the next year, the first number of the “*Pennsylvania Journal of Prison Discipline and Philanthropy*” was issued, and, (with the exception of one year,) has been continued until the close of last year, (1861,) comprising in all 16 volumes.

“House of Refuge.”—In 1845, after observing the successful progress of the House of Refuge for juvenile delinquents for a period of nearly twenty years, the practice of frequently sending boys of an older and more hardened character, to be confined there with the younger and less so, was seen to be an evil which ought to be remedied if practicable. The subject was discussed by the Society from time to time, and the suggestion was made that a prison on the separate plan, somewhat modified from the penitentiary, should be erected for the reception of this older class, but the heavy cost of such an establishment seemed to be an insuperable difficulty in the way at that time.

Abuses in County Prisons.—In the autumn of 1846, one of the officers of the Society, who had personally visited and inspected several of the county jails, made a voluminous report of their condition. His leading representations were, “the entire neglect of wholesome discipline, the intermingling of prisoners of both sexes and all ages, and every grade of crime, from murder to misdemeanor, and the idle and vicious habits in which the prisoners were allowed to live, made it almost a matter of doubt, whether the public would not, in the end, gain by abandoning most of the jails. Cases were mentioned, in which men had escaped and found honest employment, who, if they had staid their time out in jail, would probably, have sunk irreclaimably through the influence of such associations, as they must have encountered there.”

Vindication of our System.—In 1847 a volume was published in Boston, under the title of “Prison Discipline in America,” which was ably written, and though not *intending* to misrepresent our system, really did so very greatly, from a want of a correct knowledge of the facts. The author being a gentleman of standing, and his work being favorably noticed in two of the principal periodicals published in that city, it was found that the prejudices previously existing against the system we had adopted, were likely to be strengthened and confirmed. To counteract this, and enlighten the public generally in relation to the true character of the “Pennsylvania System,” a pamphlet, written by one of our members, was published by our Society in 1849, entitled “*An Inquiry into the Alleged Tendency of the Separation of Convicts, one from the other, to produce disease and derangement,*” by a citizen of Pennsylvania: 160 pp., 8vo. This work had a wide circulation, and we trust has had a salutary influence in removing unfounded prejudices, and correcting erroneous impressions.

Colored Criminals.—In 1849, the Society entered into an investigation of “what was alleged to be a marked difference between the length of sentences passed on colored convicts, compared with those passed on whites, and also the comparative mortality of the two classes.” For the interesting results of this investigation, see the first number of volume 5th of our Journal, January, 1850.

House of Correction.—The Visiting Committee of the County Prison became early sensible of the imperative necessity for some plan being

adopted by which to remedy the great evil to the prison and its proper inmates, and burthen to the community, resulting from sending there a vast multitude for vagrancy, intoxication, and disorderly conduct, of which classes alone, the number committed in 1850 was 4,557. (The number of these for 1860 was 16,793.) Many of these had sufficient bodily strength and ability to earn their own living, but their idle and dissolute habits would be continued so long as food and lodging were furnished them, either in the almshouse or jail. "To mitigate, if possible, this evil, and to relieve the community to some extent of the burthen it imposes, the Society adopted a resolution in 1851, to inquire as to the expediency of establishing a House of Correction, or probation, intermediate to the Almshouse and Prison, for the reception and employment of this large class of persons; and such measures were adopted by the parties interested, as led to the passage of an act in 1854, establishing such an house. The appropriation for the object was sufficient for an ample experiment, though the details of the bill might be open to some grave objections." It is much to be regretted that from various considerations operating upon the different parties on whom devolved the duty of executing this law, its provisions were not carried out, and it consequently became inoperative.

Neither the Prison Society nor the public were satisfied with this failure, and the subject being renewedly pressed on the attention of the Legislature, a new act was passed in 1860, under which a Board of Managers have been appointed, and from the character of their preliminary action, there appeared to be ground to hope that this highly important advance in the reformatory movements of our Commonwealth would soon be carried into effect. There is great reason, however, to apprehend that the present disturbance in the country may retard it.

Revision of the Criminal Laws.—In 1857 the Society memorialized the Legislature to appoint a commission to revise and modify the criminal laws of the State; and in 1858, a committee was appointed to proceed to Harrisburg to promote the passage of the requisite law for the purpose. The efforts of the Society in this behalf proved successful, and resulted in such a revision and modification as must be productive of much good, although the commissioners did not feel authorized by the character of their appointment, to go into all the questions suggested by our Society.

We have now accomplished what we designed in the projected plan of this report, in tracing the history of our Society from its origin down to quite a recent period; yet our sketch, extended as it has been, fails to make anything approaching to a full exhibit of its doings during that time.

It remains for us now to bring into view the principal transactions of the last year or eighteen months, from which we think it will be evident that “The Philadelphia Society for Alleviating the Miseries of Public Prisons,” is still alive to the interests of humanity connected with its sphere of action, as in its early days, and standing as a “watchman upon the walls,” both to detect abuses which may exist, and use efforts for their removal, and to avail itself of every opportunity which may present for furthering the progress of penal reform, not only within our own City and State, but also amongst our neighbors.

Prison at Washington.—In 1860 we were informed that there was a proposition to erect a new prison at Washington City, and our Society immediately took action in relation to the subject, with a view to communicating with the authorities there, and urging upon them the importance of making their arrangements so as to adapt them to introducing the system of cellular separation. Circumstances, however, prevented this communication from being made, and we believe that no actual steps have yet been taken by them to carry out their proposition, and we have recently had accounts of a most deplorable state of things in their jail. Shocking as the account is, we can only appropriate space to introduce one short quotation, to wit, “In other portions of the building are narrow passages, five feet wide by twenty-five feet long, upon which open three cells. In each of these, only *ten* feet long by *eight* wide, *ten* prisoners sleep, and during the day the whole *thirty* have merely the liberty of moving through the twenty-five feet of crowded and fetid passage-way, without books, papers, work, or any mental distraction beyond the idle words of their companions.”

New Prison in New Jersey.—Learning also that a proposition to erect a new Penitentiary in the eastern part of the State of New Jersey, was likely to be brought before their Legislature last winter, our Society adopted a memorial of a character very similar to that of the communication intended to have been forwarded to Washington, and appointed a committee to take charge of

it. A part of this committee visited Trenton, and in a very satisfactory interview with the Governor, were assured of his cordial co-operation in promoting our views. The memorial was duly presented to the Legislature. No action, however, has yet been taken in reference to this important matter, and it is feared that the terrible calamity which has overtaken our beloved country will occasion its postponement.

Proposed Change in Mode of Appointing Inspectors.—A movement having taken place in our State Legislature in the session of 1861, to take the appointment of the Inspectors of the Eastern Penitentiary from the Supreme Court, where it had been placed by law; our Society immediately forwarded a remonstrance against the proposed change. They apprehended that the motive to this was, at least in part, political partisanship, and whether so or not, the result, if successful, would almost inevitably be to drag our noble Penitentiary and its government into the arena of partisan politics, which would be a deplorable calamity. The change was not made.

Law for shortening Sentences.—At a stated meeting of the Acting Committee, held October 18th, 1860, the following preamble and resolutions were introduced, and being unanimously adopted, were referred to a special Committee of five members, to take the subject into consideration, and make report thereon to a future meeting. To wit: “Whereas, the hope of reward is to the human mind one of the strongest incentives to good conduct; and as, in this enlightened age, such incentives are found to be more humanizing than punishment, which partaking of the character of vengeance begets its like, as a natural result, in the mind of its victim; and as under the present humane mode of treatment of another class of sufferers, kindness and consideration are found more effectual as remedial agents than chains and dungeons, which were formerly resorted to. And whereas the opportunity of doing overwork in the prisons of our city has been attended with advantage, by promoting the benefit of the prisoner, and contributing to the good order, as well as to the pecuniary profit of the Institutions, thus giving reasonable ground for believing that further service may be rendered to the cause of humanity, by taking another step in a like direction, it therefore becomes those interested in promoting the improvement of their kind, and in relieving the miseries of public prisons, to consider whether there be not a mode, by which those convicted of crime may be further encouraged in a course of good conduct, and confirmed in

habits of morality and good order. Therefore—Resolved: That a Committee of —— be appointed to take into consideration, and report, whether some plan may not be suggested, by means of which the terms of sentences might be somewhat shortened, dependent on a continued course of good conduct of the prisoner; thus encouraging them in the practice, and perhaps establishing the habit of subordination and submission to those in authority, and to the laws of the community; and also to consider any other plan likely to produce the same effect, that may occur to them, or be presented for their consideration.”

At a stated meeting of the Acting Committee, held February 21st, 1861, the Committee appointed to take into consideration the foregoing Preamble and Resolution, made an elaborate and able report, signed by four of the members, of which the following is an abstract. They inform, that after first entering on the consideration of the subject, they concluded to ask a conference with the Inspectors of the Eastern Penitentiary, to ascertain their views in relation to the matter. That their application to the Board was referred to the Visiting Inspectors, with whom the desired interview was obtained, and the result was sufficiently encouraging to induce the Committee to give the subject further consideration. They subsequently concluded that it was expedient to adopt the principle of the Preamble and Resolution referred to them, and prepared a schedule of such apportionment of the time proposed to be deducted as appeared to them suitable; and they agreed to propose to the Society that an application should be made to the Legislature for the enactment of a law to carry the same into effect. This result was arrived at after much reflection on the subject, and inquiring into the results of the practical working of the system in five of the States of the Union, to wit: Massachusetts, Michigan, Wisconsin, Iowa, and Ohio, where the plan had been several years in operation, and the testimony of the Inspectors and Wardens of the prisons where it prevailed was highly approbatory.

The Committee also, in the course of the consideration of the subject referred to them, applied to Judges Thomson, Allison, and Ludlow, of the Court of Quarter Sessions of this county; Ex-Judge King, largely experienced in criminal jurisprudence; Ex-Judge Lewis, of the Supreme Court, and Wm. B. Mann, District Attorney, asking their opinion in relation

to the proposed measure. A written reply was received from each of them, expressing favorable views.

[As it is proposed to publish this Report, with the letters of the Judges and District Attorney, in an Appendix, in full, this synopsis is deemed sufficient for our present purpose.]

The Committee appended to their report the following Resolution:

“Resolved, That a Committee of five be appointed to apply to the Legislature for the passage of a law, in conformity with the recommendation set forth, with authority to proceed to Harrisburg, to endeavor to procure its enactment.”

They also appended thereto a schedule of the proposed deduction to be made for continued good conduct on the part of prisoners.

The time of the meeting at which the report was received being so occupied with other matters as not to allow of a full discussion of a subject of such importance, it was concluded to adjourn for one week, for this special purpose.

At the adjourned meeting, held February 28th, it was taken up and freely discussed; but without taking the question on its adoption, it was continued over to the next stated meeting, with an understanding that it should then have precedence of all other business. Accordingly, at this meeting, March 21, 1861, a full expression of the views of the members, in regard to the measure, took place. After which, the question was taken by yeas and nays, and resulted in its adoption by a decided majority. And at the next meeting, one of the members who had voted in the negative, asked and obtained leave to have his name recorded in the affirmative, on the ground that he had voted under a mistake. Thus, the final result was the adoption of this important measure, by more than two votes in the affirmative, against one in the negative. A memorial to the Legislature, asking for the passage of a law to carry out these views of the Society, was immediately adopted, and being duly signed by the President and Secretary, a portion of the Committee attended with it at Harrisburg, to represent the Society in making such explanations as might be called for, and urging its passage. This was accomplished in the Senate, about two weeks before the close of

the Session, the bill sent up by the Society having been by each House first referred to the Judiciary Committee for examination and approval. Final action on it, in the House of Representatives, did not take place till near the close of the Session. The Act being passed, was approved by the Governor, and became a law on the first day of May last. It is intended to publish it in the Appendix hereto.

We understand that the Inspectors of our County Prison are acting under this law, and we trust its salutary influences will soon become apparent. At the Eastern Penitentiary we learn that no direct steps have been taken towards carrying it into effect, unless the fact of their having opened a book, in which cases of prisoners *sentenced since its passage for a term of over ten years*, are entered with a view to applying its provisions to them, may be viewed as such a step. They have declined acting, on several pleas, which we think untenable. One, that the Act is ambiguous and its true meaning not susceptible of interpretation. Another, that such a law is unconstitutional. But we submit whether this latter question should have been raised by them, when the same body of gentlemen about the time this Act was passed, that is, in their Annual Report issued in January 1861, recommended to the Legislature the adoption of the following provisions, embracing precisely the same legal and constitutional principles.

First.—“That in all cases of first conviction for crime, of minors, the term of imprisonment shall be terminated by the Inspectors, with the consent of the president judge of the court in which said minor was sentenced, when in their opinion the punishment has produced its expected results.”

Second.—“That in all cases of first conviction for crime, of persons between 21 and 25 years of age, the term of imprisonment shall in like manner be lessened, as a reward for good conduct, by the reduction of three days in every thirty, after the first twelve months of imprisonment.”

We, however, think that it would be illy worth our while on this occasion, to enter into an elaborate defence of the law, especially, as it is probable that measures will soon be taken to procure a judicial interpretation of it. We shall, therefore, dismiss the subject after merely putting ourselves right, in

relation to some erroneous ex parte statements with regard to our Society, unnecessarily introduced into the recently published Special Report, in which the committee of the Inspectors undertake to discuss and condemn the law in question. First. In two or more instances, it is stated that the passage of the Law was procured by “members” of the Society; in one, the assertion is that “some *one or two of the Prison Society’s Committee* caused the Act, under examination, to be enacted into a law.” The history of the whole business which we have just given, from the first introduction of the measure to the notice of the Acting Committee, till it became a Law of the State, abundantly proves that it was the *Society* which was acting; sometimes, in its associated capacity, and sometimes, through its individual members, who were empowered to act for it. The *Society* appeared at Harrisburg by a *delegation*, not in a *body*. Second. Certain paragraphs or passages are introduced into their Report, which are said to have been extracted from an article entitled, “Considerations respecting some recent legislation in Pennsylvania, originally written for the Journal of Prison Discipline, vol. 16, October 1861.” The extracts themselves present an erroneous view of the proceedings of the Society, but, we are willing, for the present, to let them pass. But the implication in the Report, that the Society or its Acting Committee, had cognizance of the article referred to, when offered for publication in their Journal, is calculated to make an erroneous impression. Neither the Society nor the Acting Committee had any responsibility, either for the acceptance of the part published, or for the rejection of the remainder. It never came under their notice, till after it was printed and circulated.

Abuse of Power by Magistrates.—The corrupt and oppressive abuse of power by the Committing Magistrates is a great evil with which our Society has been battling almost from its origin, but without yet vanquishing it, as the report of the Prison Agent for the last year will abundantly prove. We have a committee under appointment in charge of the subject.

Pardons.—The pardoning power, and the manner in which it is exercised, have also recently again claimed our attention.

Tobacco.—The Inspectors of our County Prison have adopted a rule by which the use of tobacco has been entirely excluded from the prisoners confined there, unless it be in cases strictly medicinal. This rule has been in

force for upwards of two and a half years, and the resident Physician, in each of his Annual Reports, has spoken in strong terms of its salutary results. Its use has not yet been prohibited by the Inspectors in the Eastern Penitentiary, though the quantity allowed to be furnished has been much reduced. Our Society has had under the care of a committee, the consideration of the propriety of memorializing the Inspectors in favor of adopting a similar rule to that in force in the County Prison, but no final conclusion has yet been arrived at, so far as to justify any official action. In the meantime, however, the visitors are encouraged to use moral suasion amongst those using it, to abandon the practice. It is very satisfactory to know that this course has been successful in several instances, and that the individuals have since expressed their conviction of the advantage of this change in their habits.

Discontinuance of the Quarterly Journal.—The publication of the Prison Journal, which was commenced in 1845, as heretofore stated in regular course, was maintained at a heavy charge upon our funds, so that after payment of the other current expenses incident to conducting the Society, such as compensation to the Prison Agent, room-rent, slates, copy books and other stationery for the use of the prisoners, &c., the balance, to be appropriated to the relief of discharged prisoners, and other practical objects properly having claims on a “Society for Alleviating the Miseries of Public Prisons,” was very small, and as appeared to many, insufficient. They doubted its being a legitimate appropriation of so large a portion of the income, and individual members frequently conversed together on the expediency of discontinuing the publication, the annual cost of which was about \$550. In 1858 a resolution to discontinue it was introduced, and earnestly and largely discussed, but on a pledge given by those desirous of continuing the publication, that they would take such steps as would secure an ample addition to our annual income, it was agreed that it should not be suspended at that time. Efforts were made soon after, which resulted in an increase in the annual subscriptions for one or two years, but each year since, a number of our subscribers declined paying, and the calamitous war which has overtaken our country, has occasioned such a reduction of our means, both actual and prospective, as to make it evident that we must either suspend the publication, or suspend the appropriation, which was already much too small, for the relief of discharged prisoners. In this state

of our affairs, many of the members could not hesitate a moment which alternative to choose, and therefore a resolution for its discontinuance, and the substitution of a full Annual Report was introduced and entered on the minutes, with notice by the mover that it would be called up for consideration at the meeting to be held three months after its introduction. At the meeting designated, it was accordingly taken up and extensively discussed in the “Acting Committee,” and a resolution referring it to the next stated meeting of the *Society*, with the recommendation that the measure should be there adopted, was passed by a large majority. Accordingly, after being freely discussed by the Society at that, and also an adjourned meeting, it was adopted in a modified form, by which the *Quarterly* publication should be discontinued, and an *Annual* Journal substituted for it, which should contain an Annual Report, and such essays or other matter as might be offered, and be deemed suitable by an Editorial Board, to be elected for the service.

Before leaving the subject of the discontinuance of our Quarterly Journal, it is proper to refer to its late editor, our fellow member, Frederick A. Packard, who took charge of it a few years after its commencement, and conducted the publication with marked ability from that time till its close. The Society is indebted to his pen for many valuable articles published in the Journal, and separately.

Lunatics.—An evil of no small magnitude, in the consideration of which the Society has been earnestly engaged, is the practice which prevails of committing lunatics to our County Prison, some of whom have been convicted on criminal charges, and others “picked up in the streets, and committed for want of a better home,” as we are assured by the Prison Agent. An application, in which our Society is co-operating, is about to be made to the Legislature, which it is hoped may result in an arrangement being made which may relieve the prison of this class of its inmates.

Prison Agent.—William J. Mullen, who has for several years been under appointment by the Inspectors of the County Prison, and also by our Society as “Prison Agent,” has been as indefatigable in the discharge of his duties during the past year as heretofore. His particular province is to take cognizance of, and inquire into all cases of alleged oppressive and illegal commitments to the County Prison; and in the course of his investigations

he frequently procures conclusive evidence that individuals have been committed on charges which were utterly groundless, or at least frivolous and insufficient. From his interesting Annual Report, embracing the year 1861, just issued, we learn that he investigated 2,700 cases during the year, and with the co-operation of the constituted authorities, succeeded in liberating 1,182 of these from prison. He seems to have devoted his whole life and energies to this service, the duties of which he discharges with great fidelity.

Prison Library.—The Library at the Penitentiary now contains about 2,900 volumes, of which about 680 are in the German and French languages. The selection has been made with a view to furnishing interesting and instructive reading, adapted to the various capacities and tastes of the prisoners; and it is satisfactory to be able to report that the books are extensively used. The number of volumes loaned during last year was about 20,000. When we remember that the average number in confinement during the year was not over 458, many of whom were very degraded and ignorant, and wholly unable to read when they entered, it becomes in our view, an interesting feature of our system of discipline, not only that the opportunity for mental exercise and enjoyment should be so freely presented, but that these poor creatures should feel the inclination to avail themselves of it so largely, whether it be for mere amusement or for instruction. There is also a smaller Library at the County Prison of a similar character.

Number in the Penitentiary in 1861.—The entire number of prisoners in the Penitentiary during the year 1861, was 646. The largest number at any one time was 485, and the smallest 431. The state of health amongst them was generally good, and the per centage of mortality exceedingly small, there having been only two deaths.

Prison Society's Visitors and Visiting.—We now come to speak of what, under all considerations, is, we believe, the most important part of the action and services of the Society—that which is accomplished through the agency of the Visiting Committees. To give to those who have not been on the appointment a clear view of the manner and extent of the action in this direction, it may be best to mention the preliminary arrangements. At the Annual Meeting of the Society forty-four members are elected, who, with the officers ex-officio, form the “Acting Committee.” After the election,

this Committee organizes and subdivides itself into two Visiting Committees, one of them allotted to the County Prison, and the other to the Eastern Penitentiary. These sub-Committees next organize and allot to each of the members a certain division, or portion of a block or corridor, containing only such a number of cells as will admit of his paying frequent visits to each of the inmates. The Committees hold meetings monthly, at which time each member is expected to make a report of the number of visits he has paid to the prison, and the number of interviews he has had with the prisoners, particularly designating such as took place *inside of the prisoners cell*, which interviews are considered to be much more likely to be serviceable than those at the cell door. When any thing of especial interest occurs, it is expected also to be added to the report. The reports, at least as regards the Penitentiary Committee, are required by the rules to be in writing, and 182 of such reports have been made by them during the year just past, giving an account of 776 visits to the Penitentiary, and of an aggregate of 8942 interviews with the prisoners--6149 of which were inside of the cells, and 2793 at the cell doors. These interviews are believed to average about fifteen minutes in length, though each case is governed by its own circumstances. With some, very little more than a friendly salutation seems called for, as there is no ground to work upon, with hope of being serviceable; while, with others, a half hour, or in some instances even an hour, may be profitably spent. In performing these visits with the hope of doing good, it is deemed essential to approach the prisoner in a spirit of kindness, and thus convince him that, although the world may have cast him off, and notwithstanding the degraded condition to which his crimes and depredations on society have brought him, there is one at least who cares for his soul, and who feels that, although he has justly forfeited his liberty, he is still a fellow being, and a candidate for Divine Mercy, and therefore entitled to such a measure of the common comforts of life as the law allows him. When the prisoner, by this means, becomes fully assured that the visitor has no sinister purpose in view, but is alone prompted by desires for his good, he becomes willing to hear freely, even if he does not assent to the importance of such counsel as may be addressed to him. Under these circumstances, the visits sometimes become deeply interesting occasions, both to the visitor and the visited. Here, where no human eye sees, and no human ear hears them, the overshadowings of Divine Love are sometimes witnessed to soften that heart which had been so long hardened,

that even the criminal himself had believed that it would never again be susceptible of feeling; and the visitor acknowledges that, through the same influence which softened the heart of the prisoner, he has been enabled to hand forth counsel suited to the case before him. Some of these interviews, are mere kindly, social opportunities, in which no religious instruction is attempted. The prisoners are encouraged to be obedient to the rules of the prison, and respectful in their deportment toward the officers; and in the daily reverent reading of the Holy Scriptures, and committing portions of them to memory. They are also recommended to adopt and maintain habits of cleanliness, both in their persons and cells, which is entirely in their power, as each one has a hydrant at his command.

Those who have had little or no school education, are urged to avail themselves of the opportunity now afforded them, through the aid of the teachers employed by the Institution, to acquire a knowledge which will not only prove a source of enjoyment, but will be of real service to them after leaving the prison walls. The results in some instances are remarkable. Our space, however, will only admit of a short reference to two cases, which are by no means solitary ones. One visitor reports—"No. 4186, when I first visited him, did not know the letters of the alphabet. He said he had tried to learn and could not. I persuaded him to make another attempt, and endeavored to impress upon his mind the necessity of at least learning to read his Bible, that he might learn his duty and regulate his future life. He did make the attempt, and can now read and write very well." No. 4340, a German prisoner, at the time of his entrance into the penitentiary, could not read or write a word in the English language. Fifteen months afterwards he could read in our language with such facility, that he rarely met with words which he could not understand, and much of his English writing was beautiful. The Visiting Committee of the Penitentiary appoints a sub-Committee to attend to the cases about to be discharged by the expiration of their terms of confinement. It is their duty to see each prisoner before the expiration of his term, to inquire generally into his condition and prospects, give him such counsel as to his future course as seems to them suitable, supply him with such articles of clothing as he requires, sometimes to give small sums of money for their immediate necessities, and to aid them in obtaining employment, or to get to their friends, as the case may call for. Some of the more hopeful among them are encouraged to write to the

Committee, informing as to the manner of their getting along, &c. They occasionally receive very satisfactory letters.

The importance of the visitors from our Society, in aiding to carry out the intention of the law, that the prisoners should be frequently seen by proper persons other than the keepers, will be better appreciated when the fact is adverted to, that the law directs that “the Inspectors, in their *weekly visits* to the several places of confinement, *shall speak to each prisoner* confined therein.” And with regard to the Warden, the law says, “he shall visit *every cell and apartment*, and see *every prisoner*, under his care, *at least once in every day.*”

In speaking on the subject of visiting, and the care extended to discharged prisoners, we have more directly referred to the Penitentiary than the County Prison, for particular reasons. A prominent one is, that the Penitentiary illustrates the “Pennsylvania System,” while the County Prison, on account of the crowds sent there for vagrancy, intoxication, disorderly conduct, &c., does so very imperfectly. Another is, that the population of the latter, being of a less permanent and settled character, the same systematic course of visiting cannot be carried out, and consequently a detailed record of the proceedings there has not reached us. The visitors allotted to that prison have discharged their duty very faithfully, and the members, in the course of the year, have had numerous interviews with those confined there.

“*The Association of Women Friends.*”—The care of visiting the female departments in both prisons has been left with “The Association of Women Friends” (to whom our Prison Society makes an annual appropriation), who have undertaken the service from a conscientious sense of duty, and, we trust, with much benefit to the visited. In the year 1861, they paid 1065 visits to the female prisoners in the Penitentiary and County Prison, of which 499 were at the former, and 566 at the latter. They state in their report that they “are encouraged from time to time, by many little evidences, that their labors are not in vain in the Lord. In a few instances, apparent amendment of life has been the result of His blessing on their feeble efforts.”

Death of Richard Williams.—Since our last annual meeting, Richard Williams, who had long been pleasantly associated with us as a member of the Acting Committee, and who had been a faithful, kind-hearted, and useful visitor at the Eastern Penitentiary, has, in the ordering of inscrutable wisdom, been removed from works, as we trust, to the fruition of rewards amongst the blessed.

EDWARD H. BONSALL,
TOWNSEND SHARPLESS,
CHARLES C. LATHROP,
ALFRED H. LOVE.

PHILADELPHIA, *1st Mo. (Jan.)* 23, 1862.

APPENDIX.

REPORT ON THE SUBJECT OF LAW SHORTENING SENTENCES.

The Committee to consider the expediency of applying to the Legislature for a graduated diminution of sentences, dependent upon the continued good conduct of prisoners, having conferred together, and being favorably impressed with the advantages likely to arise from the adoption of the plan, concluded to ask a conference with the Inspectors of the Eastern Penitentiary.

Their application to the Board was referred to the Visiting Inspectors, and an interview was accordingly had with them, at which your Committee received sufficient encouragement to induce them to give the subject further consideration.

At a subsequent meeting of your Committee, it was agreed that a Report should be prepared in favor of an application to the Legislature; and also a schedule of such apportionment of the time proposed to be deducted, as might appear suitable. It was also agreed to prepare a memorial for the consideration of the Acting Committee, addressed to the Legislature, asking for a modification of the law in that particular; and setting forth that several other States have adopted the principle, and that in practice it appears to be cordially approved by those who have administered the several laws under these provisions. Both of which documents are herewith submitted.

The Committee have herein embodied a summary, showing the different States which have enacted a law upon the subject, with their respective gradations, with other information relating thereto: viz., in MASSACHUSETTS, the law says: For less than *three years'* sentence, *one day in each month* may be deducted for good conduct. For sentences, from *three to ten years*, *two days in each month*; and for *ten years and over*, *five days*. The

Inspectors now propose to increase the time, and that for less than three years, one day in each month; three to seven years, two days; seven to ten years, four days; ten years and over, five days. They say, as an aid to discipline, it is of great value; affecting some, who are insensible to other motives; and is a strong inducement to good behavior. The Warden fully indorses this, and says, another year's experience confirms it.

MICHIGAN says: For the *first year, one day in each month*; for the *second year, two days*; and after that, *four days in each month*. For a willful violation of the rules, Inspectors have the power to deprive of any or of all the time gained. The Inspectors have recently recommended to the Legislature, that it should be made *four days in the month, from the beginning*. The WARDEN commends this as a wise measure. He says the law works *first rate*, and there is but little punishment.

WISCONSIN says: At the end of each month, the Commissioner shall give to each prisoner who has conducted well, a certificate, diminishing his term, *not exceeding five days in each month*. All certificates to remain on file, subject to being annulled for subsequent misconduct. A certificate of good conduct, at the expiration of sentence, *restores to citizenship*. The Warden recommends, that, after good conduct for two years, *ten or fifteen, or even twenty days*, for *long sentences*, might be deducted from each month.

In IOWA, the law says: For the *first month, one day* shall be diminished for good conduct; at the end of the *second month, two days* additional; *third month, three days*; and for the *fourth month, four days*; and *four days for each subsequent month* of such continued good behavior.

In OHIO, the law of 1856 says: For the *first month, one day* shall be deducted for good conduct; *for the second, two days*; *for the third, three days*; for the *fourth, four days*; and for the remainder of his term, *four days in each month*. After three years' experience, viz., in 1859, the law was further modified, increasing the number to *five days in each month*. It is, however, provided, that the Directors may diminish the time gained, either in whole or in part, for willful violation of the rules. If their conduct be uniformly good, they shall be entitled, at the expiration of their time, to receive a certificate from the Warden, on presentation of which to the Governor, they shall be restored to all the rights of citizenship.

The Inspectors say: “We cannot too strongly recommend that feature of the ‘new law’ which offers a premium for good behavior, by deducting a portion of their term of imprisonment.” They also say: “Banished as they are from the social enjoyments of life, without some motive, the mind naturally sinks into a stagnant indifference. The diminution of sentence, and the restoration of all rights of citizenship, are powerful incentives to good behavior.”

The Warden says: “Among the reforms already introduced (in Ohio), none has evinced the power of controlling the wayward in so striking a manner as that provision of our law allowing a diminution of time for good conduct.” He says: “The former officers of this prison bear testimony in their reports to the benefits derived from this law; but I think,” he says, “they fail to express even a moiety of what is really its due.” He further adds: “If it be a fact, and I presume none will dispute it, that no person can continue to *do right* (whether forced or otherwise), for any considerable length of time, without being to some extent permanently benefited—then whatever is the greatest incentive to good conduct, is in my opinion the best calculated to accomplish the greatest amount of good. That the diminution of time *is this incentive*, none that have watched its operations will feel disposed to dispute; and I know they will not think of denying, that, combined with our *overwork system*, it has done more to preserve order and restrain vicious passion than all other incentives together. Language fails to describe its effects. Its work must be seen to be appreciated.

He further says: “As no special provision was made for United States prisoners, they received none of the benefits of this law; but on application to the Attorney-General, an opinion was obtained, by which these convicts also receive the same benefit.”

Your Committee, in arranging their schedule, have taken into consideration, that a sentence of equal length, under the system of separation, is a greater privation to the prisoner than under other systems; and therefore the scale of abridgment is more liberal, and particularly after the third year, and progressively so, according to the increased length of sentence.

The advantages likely to result from the contemplated improvement, commend themselves so fully to our better feelings, that little need be said

by way of illustration; but the expression of some views may perhaps be important. In the preamble to the resolution of our appointment, it is suggested that “*the hope of reward is to the human mind one of the strongest incentives to good conduct;*” and in the relation in which we are considering it, the principle may be applied with its fullest force; from the fact that prisoners are shut out from the ordinary sources of pleasurable influences. Everything, therefore, partaking of the character of a reward is received and dwelt upon by them with considerable interest. This, we think, must be evident to those accustomed to visiting prisoners, in a friendly and familiar manner. Many of them, who for the first time, find themselves within the limits of a cell, of which they are to be the inmates for a series of years, experience a shock, which operates with great force upon their feelings; and whatever may have been their previous condition in life, yet possessing the attributes and aspirations common to our nature, they may be acted upon by like influences.

Separated from the world, and deprived of the enjoyments to which they may have been accustomed, a feeling of despondence often covers the mind; and the absence of the usual sympathies and incentives leads to great discouragement.

Such of us as may have been deprived of our ordinary inducements to exertion, even for a short period, can in some degree feel for those, so completely shut out from such impulses. It is these influences that usually stimulate and control most of our pursuits in life; without them, existence to many would be a burthen.

A long and dreary confinement is before the prisoner, and whether the sentence be for a greater or a less period, to his imagination it seems to be of almost interminable length; and under present circumstances, feeling that no effort on his part can diminish it, the future seems enveloped in a cloud. The prospect, therefore, of even a *brief abridgment of sentence*, would be looked forward to with great delight. It would serve as a kind of morning star in his horizon, the prospect of which would quicken the pulse and encourage to effort—or as an anchor to fall back upon, when clouds of depression overshadow the mind—or when a state of irritation or impatience, arising from nervousness, might, like a storm, overcome his better judgment, and drive him to some act of desperation.

In confirmation of the position, that rewards have a potent influence on the inmates of Penal Institutions, it may be mentioned that one of our Committee, in a recent tour in Europe, visited the Parkhurst Prison (for lads and young men), in the Isle of Wight, when he was informed by the Governor of the prison, that in the year 1849, when there were no special rewards existing, that the number of offences recorded were between five and six thousand. In the following year, 1850, a modified system in that particular having been introduced, the number of offences were reduced 25 per cent., while, in the following year, viz., 1851, a small amount of wages and other privileges being allowed, the offences were reduced to 678; that is, from near 6000 to about one-eighth of that number. The Governor of the Institution added, there had also been an increased cheerfulness and greater obedience to officers. Comment is unnecessary.

Your Committee may here remark, that the range of thought with prisoners is often so limited, and their sources of enjoyment so few, that everything of a pleasant character is dwelt upon with much interest; so much so, that they can often tell the *precise day* they were last visited, and by whom, although weeks or months may have elapsed; but a morbid feeling at times prevails with others. They think that society has done its worst toward them; and under that impression their minds are strongly embittered; and sometimes a determined feeling of revenge is unhappily induced. But the abiding consciousness that provision has been made by this *same community*, by means of which they may materially shorten their term of imprisonment, will, we think, serve to awaken a feeling of gratitude, and keep before them continually a *door of hope*; which, whether considered in a temporal or in a spiritual point of view, is so essential to the happiness of all human beings.

“Hope to the heart both strength and comfort give;
But hope without an object cannot live.”

Besides, the *discipline of mind* required for maintaining advantages gained, will silently but steadily be doing its work: and the *habitual* observance of rules of good order, to which many have never been accustomed, may open a new field of thought and of action; and under the divine blessing cause a change of character. In addition to which, the satisfaction derived from a correct course of conduct would be a suitable subject for our Committees to

enlarge upon, in their visits; showing, that, by pursuing a similar course on their release from prison, numerous advantages would probably follow.

Little circumstances often change a man's course in life, and sometimes cause a great improvement in conduct; and the simple appliance of enabling them thus to shorten their sentence—giving evidence of a disposition to temper justice with mercy, might produce the desired reformatory effect; and your Committee, in view of the experience gained in other institutions, can hardly doubt of its beneficial results in our own. For who shall say what slight incentive, or what word of kindness or encouragement, may not change the whole man and his future destiny.

But an objection has been stated to the measure proposed; and that is, that the worst men are generally well-behaved in prison; and that such would derive more benefit than those disposed to reform. So far as that might be the case, *even their good conduct* would be a good example to the others; *certainly it could do no harm*; and even the worst of men might be benefited by bringing a new influence to bear upon them. But this objection, as we conceive, is not of sufficient force to prevent the adoption of what is proposed; if it were, our public institutions might perhaps be closed, and even private charities abandoned, because impostors sometimes partake of their advantages. The Inspectors of the Massachusetts prison, as before stated, say that this plan has an effect upon some who are insensible to other motives.

Such things are not unfrequent in ordinary life, and many a wayward youth has been diverted from the downward course by a gentle admonition, or by a casual observation, perhaps not even intended for his ear. And how many of *us* have been preserved from allurements and temptations to evil, by the kind and watchful care of a tender and religious mother; a privilege which many of these unfortunates have never enjoyed. Under like circumstances, can any of us say, that our own lot might not have been like theirs; and indeed may not the happy and salutary influences by which we have been surrounded, have been the means of preserving us from a like unhappy condition? Many persons are impressed with the idea, that a man convicted of crime, and sent to a penitentiary, must necessarily be changed in his entire nature; and that there is no hope of a restoration to usefulness. But it is not all who are sent to prison that are deliberately and determinedly

depraved; as some of us know. Many of them have been the dupes of designing men, who have escaped; others have been placed in unfavorable circumstances, and through sudden temptation have fallen; others, from indulgence in strong drink and exposure to evil company; and others, perhaps, from the bad example or neglect of parents.

Their arrest and conviction, have brought many to a sense of their folly; some of whom, no doubt, through humiliation and prayer, have sought for and obtained forgiveness.

Is it not, therefore, wise in us to endeavor to do what we can, and leave the result to Him “who maketh his sun to rise on the evil and on the good; and sendeth rain on the just and on the unjust?” “In the morning sow thy seed, and in the evening withhold not thy hand, for thou knowest not whether shall prosper, either this or that; or whether they both shall be alike good.”

In conclusion, your Committee may state that they have desired to possess themselves of such practical information as might be within their reach, and have taken some pains to do so; all of which has but confirmed their favorable feeling. Much of what has been thus obtained, is the result of the experience of prison officers in other States. But still further to satisfy themselves, one of their number had interviews with two officers of long standing in one of our own prisons, both of whom warmly commended the plan proposed, and desired to see it carried out. If the proposed change be adopted, your Committee are encouraged to believe, not only that the character of the prisoners may be improved, but that, in time, the number of applications for pardon may be materially diminished.

And finally, they are reminded, from high authority, that a persecutor of the righteous, on his way to Damascus, was suddenly converted; and that a touch of the Saviour’s garment healed an otherwise incurable disease. While instances are on the same record, of others who, having committed grievous offences, were, on repentance, graciously forgiven, and through faithfulness made instruments for good in the hand of their heavenly Master; so among these unfortunates there may be some who, through the influence of divine grace, may yet prove as brands plucked from the burning.

TOWNSEND SHARPLESS,
CHARLES ELLIS,
CHAS. C. LATHROP,
ISAAC BARTON.

Philadelphia, 2d Mo. 20th, 1861.

LETTERS FROM THE JUDGES IN FAVOR OF THE MEASURE.

PHILADELPHIA, *March 18, 1861.*

DEAR SIR—I rejoice to learn from your letter of to-day, that the Prison Society of our city have under consideration the propriety of petitioning the Legislature for an act enabling those convicted of crime, by a continued course of good conduct, to diminish their sentences a few days in each month. The hope of reward, and the fear of punishment, furnish the incentives to good conduct. All systems of religion are founded on these incentives, and they influence all human action. Their application to the imprisoned convict is nothing more than the application of a well-tested principle to a more difficult case to that to which it is ordinarily applied, and I have no doubt that the policy will be productive of beneficial results. There are many cases, I admit, where reformation is entirely hopeless—long experience in the administration of justice forces me to make this admission. But in all cases where there is any hope of reformation, the system proposed must, in my opinion, produce beneficial results. I regret that I am pressed for time so that I cannot say more at present, than to add to what I have already said, the expression of the hope that the proposed policy may be sanctioned by the Society and by the Legislature under judicious regulations to be prescribed by law.

Your's very truly,

ELLIS LEWIS.

PHILADELPHIA, *March 20, 1861.*

DEAR SIR—The proposition to reduce monthly a portion of the sentences of such convicts as conduct themselves with uniform propriety, is one that

meets my hearty concurrence; it is equally recommended by the strongest consideration of policy and humanity. It is the very best system of pardons which could be devised, since under it the remission of the sentence of the law against the offender is not the result of unjust favoritism or mistaken sympathy, but the fair reward of a meritorious effort on the part of the convict to amend his conduct. Such a system would be in entire harmony with our penal code, the primary object of which is to reform the offender, and all effort in that direction should be encouraged and rewarded.

Respect'y your ob't. servant,

EDW'D. KING.

PHILADELPHIA, *March 21, 1861.*

DEAR SIR—I am disposed to regard very favorably the proposition to modify the extent of criminal sentences, by allowing the good behaviour of the convict to work a reduction of the time of his imprisonment. We all know that the hope of reward is a great incentive to human conduct, and that it will produce its natural effects even in the cell of a prison. The experience which has been obtained of such a method of reducing sentences in several of the States where it has been practically tested, seems to favor its adoption; and upon general principles it appears to offer a method of meliorating the severity of punishment, without affecting its desired results. I should be pleased if the views expressed by you could be carried out by proper legislation.

Very truly your's,

OSWALD THOMPSON.

PHILADELPHIA, *March 21, 1861.*

DEAR SIR—I wrote to you a short note yesterday, upon the subject of our late interview, and entrusted it to one of the officers of the Court for delivery. I am surprised that it did not reach you. I repeat now, in substance, its contents. The plan suggested, of giving to persons convicted and sentenced for crime, the power of shortening their term of imprisonment, I think an admirable one; and one which, I confess, had not suggested itself

to my mind before its presentation by you. One thus confined will feel that something is left to him after the prison doors have closed upon him, for which he may strive. Something he can do by which he will be personally benefited—that *all* is not hopeless; and as an inducement to good behavior, self-control, and the foundation of habits to which, in many instances, he was before a stranger, will not be without its present and future benefit to him. I think the experiment well worthy of a trial. It promises, in my judgment, beneficial results, not only to the prisoner but to society, and if it should not answer the expectations of its friends, it can at any time be abandoned.

J. S. ALLISON.

WEST PHILADELPHIA.

DEAR SIR—Your note of 19th inst. has received attentive consideration, and although I cannot, at this time, give to you my reasons for the conclusions to which I have arrived, yet I can give you these conclusions, as follows, viz.: As a matter of experiment the act might be passed, subject to the following restrictions:

1st. That the time specified shall not exceed *three* days in any one month.

2d. That it shall only apply to cases of first conviction.

3d. That it shall expire by its own limitation, in say two or three years, unless experience demands its re-enactment.

4th. That the act shall in no wise be considered as the beginning of a system which has for its objects the enactment of a series of laws intended in practical operations to discharge every prisoner when supposed to be, or when he is in fact, reformed.

Your's truly,

March 20, 1861.

JAS. R. LUDLOW.

PHILADELPHIA, *March 20, 1861.*

MR DEAR SIR—I highly approve of the enacting of a law to enable those convicted of crime to diminish their sentence by a continued course of good conduct. Towards the close of prisoners' terms the authorities are often beset with applications to shorten it, and if the prisoner knew that it was in his power to do it, the authorities would be released from such application, and the prisoner, by adherence to good conduct, would form habits of subordination and virtue that would go far towards protecting him from perpetration of crime when released.

I should be in favor of extending the premium so as to reach one-eighth of the term, starting with two or three days the first month, and increasing as the prisoner improved. The plan is admirable, and in my opinion should be put in immediate practice.

Your's very truly,

WM. B. MANN,
Dist. Att'y.

THE LAW.

An Act relative to Prison Discipline.

SECTION 1.—*Be it enacted by the Senate and House of Representatives of the Commonwealth of Pennsylvania in General Assembly met, and it is hereby enacted by authority of the same,* That from and after the passage of this Act, it shall be the duty of the wardens and superintendents of the several penitentiaries and prisons of this Commonwealth in which criminals are confined, who have been convicted and sentenced by any court of justice of this State to undergo an imprisonment of more than six months, to keep a book, in which shall be entered the name of each person so confined, and a record of every infraction or violation by him or her of the printed and published rules of such penitentiary or prison, with the punishment (if any) inflicted on account thereof, which said book shall be laid before the inspectors at their regular stated meetings, for examination and approval.

SECTION 2.—That every prisoner or convict sentenced as aforesaid, who shall have no such infraction or violation of the said rules recorded against him or her during any month of the first year of his or her imprisonment, shall be entitled to a deduction from the term of his or her sentence of one day for the first month, of two additional days for the second month, and of three additional days for the third and each of the remaining months of the said first year of imprisonment, and shall also be entitled for continued good conduct during the second year, to a similar deduction of four days for each month during which he or she shall not have violated the rules aforesaid, and to a deduction of one additional day per month for each succeeding year until the expiration of the tenth year, and to an additional deduction of two days per month during each year of the remainder thereof: *Provided*, That it shall be lawful for the inspectors of said penitentiaries or prisons, if any such convicts or persons shall wilfully infringe or violate any of said rules or regulations, or offend in any other way, to strike off the whole or any part of the deduction which may have been obtained previous to the date of such offence.

SECTION 3.—That the said inspectors shall have full power and authority to discharge the said criminals whenever they shall have served out the term of their sentence, less the number of days to which they are entitled under the provisions of this act.

SECTION 4.—That the said inspectors shall direct the warden or superintendent to give to each prisoner, who may in consequence of good conduct be discharged at an earlier period than he would otherwise have been entitled to, a certificate thereof, stating therein the number of days that have been deducted from his original sentence for good conduct.

Approved the first day of May, Anno Domini one thousand eight hundred and sixty-one.

M E M B E R S .

Ashhurst, Lewis R.
Armstrong, William
Anderson, V. William

Atmore, Frederick B.
Brown, John A.
Brown, Frederick
Brown, Moses
Brown, Thomas Wistar
Brown, Abraham C.
Brown, N. B.
Brown, Benneville D.
Brown, Mary D.
Bell, John M. D.,
Biddle, William
Biddle, John
Barton, Isaac
Burgin, George II., M. D.
Bohlen, John
Binney, Horace Jr.
Bayard, James
Beesley, T. E., M. D.
Beesley, B. Wistar
Bowen, William E.
Bettle, Samuel
Bettle, William
Baldwin, Matthias W.
Barcroft, Stacy B.
Bailey, Joshua L.
Baily, Joel J.
Burr, William H.
Boardman, H. A.
Branson, Samuel
Bunting, Jacob T.
Bacon, Richard W.
Bacon, Josiah
Brock, Jonathan
Barclay, Andrew C.
Brooke, Stephen H.
Brooks, Henry
Baines, Edward

Budd, Thomas A.
Bispham, Samuel
Broadbent, S.
Brant, Josiah
Bringhurst, George
Beaux, John Adolph
Collins, Issac
Cope, Alfred
Cope, Herman
Cope, M. C.
Cope, Henry
Cope, Francis R.
Cope, Thomas P.
Colwell, Stephen
Caldwell, James E.
Caldwell, William Warner
Cresson, John C.
Claghorn, John W.
Chandler, Joseph R.
Carter, John
Campbell, James R.
Comegys, B. B.
Childs, George W.
Child, H. T., M .D.
Caley, Samuel
Cooper, Joseph B.
Chance, Jeremiah C.
Coates, Benjamin
Chamberlain, Lloyd
Conrad, James M.
Cook, Jay
Corlies, Samuel Fisher
Clark, Robert C.
Collier, Daniel L.
Comly, Franklin A.
Demmé, Charles R.
Ducachet, Henry W.

Dawson, Mordecai L.
Dorsey, William
Dutilh, E. G.
Ditzler, William U.
Dreer, Ferdinand J.
Dickinson, Mahlon H.
Dickinson, John M.
Davis, R. C.
Derbyshire, Alexander J.
Derbyshire, John
Donnel, Robert
Dennis, William H.
Duane, William
Earp, Thomas
Evans, Charles M. D.
Evans, William Jr.
Evans, Robert E.
Evans, J. Wistar
Erringer, J. L.
Edwards, William L.
Ellison, John B.
Emlen, Samuel
Eyre, Edward E.
Eyre, William
Erety, George
Farnum, John
Fraley, Frederick
Foulke, William P.
Fullerton, Alex.
Farr, John C.
Frazier, John F.
Ford, William
Ford, John M.
Furness, William H.
French, William H.
Field, Charles J.
Fox, Henry C.

Franciscus, Albert H.
Funk, Charles W.
Garrett, Thomas C.
Greeves, James R.
Gilpin, John F.
Grigg, John
Gummere, Charles J.
Gardner, Richard, M. D.
Hunt, Uriah
Hockley, John
Holloway, John S.
Husband, Thomas J.
Hughes, Joseph B.
Homer, Henry
Homer, Benjamin
Hancock, Samuel P.
Holman, D. Shepherd
Hand, James C.
Hazeltine, John
Hastings, Matthew
Hollinshead, Benjamin M.
Huston, Samuel
Hacker, Morris
Hurley, Aaron A.
Harbert, Charles
Heiskell, Coulson
Ingersoll, Joseph R.
Ingram, William
Iungerich, Lewis
Jeanes, Joshua T.
Jones, Isaac C.
Jones, Jacob P.
Jones, Isaac T.
Jones, William D.
Jones, Justus P.
Jones, William Pennel
Janney, Benjamin S. Jr.

Jackson, Charles C.
Johnson, Israel H.
Johnson, Ellwood
Johnston, Robert S.
Justice, Philip S.
Kimber, Thomas
Kaighn, James E.
Kane, Thomas L.
Kean, Joseph
Kelly, William D.
Kelly, Henry H.
Kintzing, William F.
Kneedler, J. S.
Knorr, G. Frederick
Klapp, Joseph, M. D.
Kitchen, James, M. D.
Ketcham, John
Knight, Edward C.
Kidderlin, William J.
Kester, John Jr.
Kinsey, William
Latimer, Thomas
Lambert, John
Lovering, Joseph S.
Lovering, Joseph S. Jr.
Lewis, Henry Jr.
Lewis, Edward
Lippincott, John
Lippincott, Joshua
Lytle, John J.
Longstreth, J. Cooke
Ludwig, William C.
Landell, Washington J.
Laing, Henry M.
Lesley, Robert
Lathrop, Charles C.
Lynch, William

Luther, R. Morris.
McCall, Peter
Meredith, Wm. M.
Myers, John B.
Morris, Isaac P.
Massey, Robt. V.
Maris, John M.
Morris, Charles M.
Morris, Wistar
Morris, Caspar, M. D.
Morris, Anthony P.
Morris, Elliston P.
Montgomery, Richard R.
Mercer, Singleton A.
Mullen, William J.
Megarge, Charles
Martin, William
Martin, Abraham
McAllister, John Jr.
McAllister, John A.
McAllister, William Y.
MacAdam, William R.
McAllister, F. H.
Marsh, Benjamin V.
Morton, Samuel C.
Merrill, William O. B.
Morrell, R. B.
Mellor, Thomas
Mitcheson, M. J.
Norris, Samuel
Neall, Daniel
Newal, William
Needles, William N.
Nesmith, Alfred
Nicholson, William
Newman, C. L.
Ormsby, Henry

Orne, Benjamin
Packard, Frederick A.
Purves, William
Parrish, William D.
Parrish, Joseph, M. D.
Poulson, Charles A.
Perot, William S.
Perot, Francis
Perot, Charles P.
Perot, T. Morris
Patterson, Joseph
Patterson, William C.
Patterson, Morris
Potter, Alonzo, D. D.
Price, Eli K.
Price, Richard
Perkins, Samuel H.
Pearsall, Robert
Pitfield, Benjamin H.
Pearson, William H.
Peters, James
Peterson, Lawrence
Potts, Joseph
Parry, Samuel
Palmer, Charles
Richardson, Richard
Richardson, William H.
Robins, Thomas
Robins, John Jr.
Ritter, Abraham Jr.
Rasin, Warner M.
Read, W. H. J.
Robb, Charles
Rehn, William L.
Rutter, Clement S.
Roberts, Algernon S.
Ridgway, Thomas

Rice, John
Rudman, William C.
Robinson, Thomas A.
Randolph, Philip P.
Rowland, A. G.
Richards, George K.
Smedley, Nathan
Shippen, William, M. D.
Scull, David
Schaffer, William L.
Scattergood, Joseph
Shannon, Ellwood
Sharpless, William P.
Simons, George W.
Stokes, Samuel E.
Shoemaker, Benjamin H.
Speakman, Thomas H.
Starr, F. Ratchford
Smith, William H.
Saunders, McPherson
Stokes, Edward D.
Sloan, Samuel
Smith, Joseph P.
Stone, James N.
Simes, Samuel
Stuart, George H.
Stewart, William P.
Townsend, Edward
Taylor, Franklin
Taylor, John D.
Taylor, George W.
Trewendt, Theodore
Tredick, B. T.
Thomas, John
Taber, George
Troubat, Raymond, M. D.
Thompson, John J.

Troutman, George M.
Thornley, Joseph H.
Thissell, H. N.
Van Pelt, Peter
Vaux, George
Wharton, Thomas F.
Wood, Horatio C.
Wood, Richard Jr.
Welsh, William
Welsh, Samuel
Welsh, John
Wetherill, John M.
Williamson, Passmore
White, John J.
Wainright, William
Wright, Samuel
Wright, Isaac
Willets, Jeremiah
Wiegand, John
Wilstach, William P.
Williamson, Peter
Warner, Redwood F.
Walton, Coates
Williams, Jacob T.
Whilldin, Alexander
Zell, T. Ellwood

LIFE MEMBERS.

On payment of twenty dollars and upwards.

Barclay, James J.
Bache, Franklin, M. D.
Bonsall, Edward H.
Besson, Charles A.
Cope, Caleb
Ellis, Charles

Fotteral, Stephen G.
Hacker, Jeremiah
Horton, John
Hollingsworth, Thomas G.
Knight, Reeve L.
Leaming, J. Fisher
Love, Alfred H.
Longstreth, William W.
Marshall, Richard M.
Ogden, John M.
Perot, Joseph
Parrish, Dillwyn
Powers, Thomas H.
Potter, Thomas
Perkins, Samuel H.
Sharpless, Townsend
Sharpless, Charles L.
Sharpless, Samuel J.
Steedman, Miss Rosa
Turnpenny, Joseph C.
Townsend, Samuel
Whelen, E. S.
Willits, A. A.
Weightman, William
Williams, Henry J.
Yarnall, Charles
Yarnall, Benjamin H.

CONSTITUTION

OF THE

Philadelphia Society for Alleviating the Miseries of Public Prisons.

When we consider that the obligations of benevolence which are founded on the precepts and examples of the Author of Christianity, are not cancelled by the follies or crimes of our fellow-creatures; and when we reflect upon the miseries which penury, hunger, cold, unnecessary severity, unwholesome apartments, and guilt, (the usual attendants of prisons,) involve with them, it becomes us to extend our compassion to that part of mankind, who are the subjects of those miseries. By the aid of humanity, their undue and illegal sufferings may be prevented; the links which should bind the whole family of mankind together, under all circumstances, be preserved unbroken; and such degrees and modes of punishment maybe discovered and suggested, as may, instead of continuing habits of vice, become the means of restoring our fellow-creatures to virtue and happiness. From a conviction of the truth and obligation of these principles, the subscribers have associated themselves under the title of “THE PHILADELPHIA SOCIETY FOR ALLEVIATING THE MISERIES OF PUBLIC PRISONS.”

For effecting these purposes, they have adopted the following CONSTITUTION.

ARTICLE I.

The Officers of the Society shall consist of a President, two Vice-Presidents, two Secretaries, a Treasurer, two Counsellors, and an acting Committee; all of whom shall be chosen at the stated meeting to be held in the first month (January) of each year, and shall continue in office until their successors are elected; but in case an election from any cause shall not be then held, it shall be the duty of the President to call a special meeting of the Society

within thirty days, for the purpose of holding such election, of which at least three days' notice shall be given.

ARTICLE II.

The President shall preside in all meetings, and subscribe all public acts of the Society. He may call special meetings whenever he may deem it expedient; and shall do so when requested in writing by five members. In his absence, one of the Vice-Presidents may act in his place.

ARTICLE III.

The Secretaries shall keep fair records of the proceedings of the Society, and shall conduct its correspondence.

ARTICLE IV.

The Treasurer shall keep the moneys and securities, and pay all orders of the Society or of the Acting Committee, signed by the presiding officer and Secretary; and shall present a statement of the condition of the finances of the Society at each stated meeting thereof.

All bequests, donations and life subscriptions, shall be safely invested; only the income thereof to be applied to the current expenses of the Society.

ARTICLE V.

The Acting Committee shall consist of the officers of the Society, ex-officio, and forty-four other members. They shall visit the prison at least twice a month, inquire into the circumstances of the prisoners, and report such abuses as they shall discover, to the proper officers appointed to remedy them. They shall examine the influence of confinement on the morals of the prisoners. They shall keep regular minutes of their proceedings, which shall be submitted at every stated meeting of the Society; and shall be authorized to fill vacancies occurring in their own body, whether arising from death, or removal from the city; or from inability or neglect to visit the prisons in accordance with their regulations. They shall also have the sole power of electing new members.

ARTICLE VI.

Candidates for membership may be proposed at any meeting of the Society or of the Acting Committee; but no election shall take place within ten days after such nomination. Each member shall pay an annual contribution of two dollars; but the payment of twenty dollars at any one time shall constitute a life membership.

ARTICLE VII.

Honorary members may be elected at such times as the Society may deem expedient.

ARTICLE VIII.

The Society shall hold stated meetings on the *fourth* fifth-day (Thursday) in the months called January, April, July and October, of whom seven shall constitute a quorum.

ARTICLE IX.

No alterations of the Constitution shall be made, unless the same shall have been proposed at a stated meeting of the Society held not less than a month previous to the adoption of such alterations. All questions shall be decided where there is a division, by a majority of votes; in those where the Society is equally divided, the presiding officer shall have the casting vote.

OFFICERS OF THE SOCIETY.

PRESIDENT,—	JAMES J. BARCLAY.
VICE-PRESIDENTS,	{ TOWNSEND SHARPLESS, DR. WILLIAM SHIPPEN.
TREASURER,—	EDWARD H. BONSALE.
SECRETARIES,	{ JOHN J. LYTLE, EDWARD TOWNSEND.
COUNSELLORS,	{ HENRY J. WILLIAMS, SAMUEL H. PERKINS.

Members of the Acting Committee.

Charles Ellis,
W. S. Perot,
Thomas Latimer,
John M. Wetherill,
Samuel Caley,
Abram C. Brown,
Benjamin H. Pitfield,
Isaac Barton,
James E. Kaighn,
Alfred H. Love,
Jeremiah Willits,
William H. Burr,
Jacob T. Bunting,
John C. Farr,
George Taber,
William J. Kiderlen,
Mahlon H. Dickinson,
William Ingram,
James Peters,
Robert E. Evans,
Albert H. Franciscus,
William R. MacAdam,

Charles Palmer,
Charles P. Perot,
Charles C. Lathrop,
Thomas A. Robinson,
Samuel Emlen,
William Dorsey,
Abram Martin,
R. B. Morrell,
John Adolph Beaux,
Dr. Wm. Armstrong,
F. B. Atmore,
Wm. Nicholson,
Charles W. Funk,
Philip P. Randolph,
Joseph R. Chandler,
Samuel Townsend,
A. G. Roland,
Coulson Heiskell,
Benj. H. Shoemaker,
C. L. Newman.

Visiting Committee on the Eastern Penitentiary.

Townsend Sharpless,
Edward H. Bonsall,
John J. Lytle,
Edward Townsend,
Samuel Caley,
Abram C. Brown,
Isaac Barton,
James E. Kaighn,
Alfred H. Love,
Jeremiah Willits,
William H. Burr,
George Taber,
William L. J. Kiderlen,
Mahlon H. Dickinson,
James Peters,

Robert E. Evans,
Albert H. Franciscus,
William R. MacAdam,
Charles Palmer,
Samuel Emlen,
William Dorsey,
Robert B. Morrell,
Frederick B. Atmore,
William Nicholson,
Charles W. Funk,
Samuel Townsend,
Albert G. Roland,
Benj. H. Shoemaker.

Visiting Committee on County Prison.

William Shippen, M. D.,
Charles Ellis,
William S. Perot,
Thomas Latimer,
John M. Wetherill,
Benj. H. Pitfield,
Jacob T. Bunting,
John C. Farr,
William Ingram,
Charles P. Perot,
Charles C. Lathrop,
Thomas A. Robinson,
Abram Martin,
John Adolph Beaux,
Wm. Armstrong, M. D.,
Philip P. Randolph,
Joseph R. Chandler,
Coulson Heiskell,
C. L. Newman.

☞ WM. J. MULLEN is agent of the County Prison, appointed by the Inspectors, and acting under their direction, and also appointed by the

Prison Society.

Transcriber's Note

Dialect, obsolete and alternative spellings were left unchanged. Printing errors, such as backwards or upside down letters, were corrected; duplicate words were deleted; missing punctuation was added.

In the original book, the Society's Constitution was split, printed on the inside front and rear covers. The text of the front portion was moved so that it is contiguous with the end portion.

The following items were changed:

- 'Glocester' to 'Gloucester'
- 'indiscrimnately' to 'indiscriminately'
- 'Commonweath' to 'Commonwealth'
- 'Misstatments' to 'Misstatements'
- 'started' to 'stated'

*** END OF THE PROJECT GUTENBERG EBOOK THE JOURNAL OF
PRISON DISCIPLINE AND PHILANTHROPY, JANUARY 1862 ***

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